



Republic of the Philippines
SENATE
Pasay City

JOURNAL

SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE

IMPEACHMENT TRIAL NO. 17
MONDAY, 17 AUGUST 2026

PREPARED BY THE
LEGISLATIVE JOURNAL SERVICE
SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 17

Monday, August 17, 2026

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at-Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty, to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Sara Zimmerman Duterte.

CALL TO ORDER

At 10:03 a.m., Monday, August 17, 2026, with the Senate sitting as an Impeachment Court, the Senate President, Win Gatchalian, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

PRAYER

Senator-Judge Raffy T. Tulfo led the prayer to wit:

Almighty Father, as we enter the seventh week of the impeachment trial, guide everyone here — the Senator-Judges, the Presiding Officer, the prosecution and defense counsels, the witnesses, and the Filipino people — so that we remember why we are conducting these proceedings.

Help us to make the most of the time and resources of our people by making the impeachment trial an instrument that would restore the people's trust in their public officials.

Finally, send Your Holy Spirit upon us so that we render a just judgment over this case. May we embody what Jesus said, that: "for the measure you use, it will be measured to you." Lord, let our words and actions here reflect the public servants that we should be.

All these we pray in Your mighty Name.

Amen.

ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following senator-judges responded:

Aquino, B.	Sotto III, V. C.
Escudero, F.G.	Tulfo, E. T.
Gatchalian, W. T.	Tulfo R. T.
Go, C. L. T.	Villanueva, J.
Hontiveros, R.	Villar, M. A.
Lapid, M. M.	Zubiri, J. M. F.
Marcos, I. R.	



With 13 senator-judges present, the Chair declared the presence of a quorum.

Senator-Judges Cayetano (P), Ejercito, Lacson, Padilla, Pangilinan, Villar (C) were also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judge Legarda was on medical leave.

Senator-Judges Cayetano (A) and Dela Rosa were absent.

In accordance with the *Rules of Procedure on Impeachment Trials*, Senate President Gatchalian recognized the duly elected Presiding Officer, Senator-Judge Francis "Chiz" G. Escudero, to preside over the proceedings of the Impeachment Court.

APPROVAL OF THE JOURNAL

Upon motion of the Presiding Officer, there being no objection, the Body dispensed with the reading of *Journal No. 16* of the Senate sitting as an Impeachment Court on August 12, 2026 and considered the same as approved.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court called Case No. 004-2026, entitled "In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte."

APPEARANCES

The Presiding Officer directed the parties to enter their appearances.

Rep. Joel Chua entered the appearances previously entered on behalf of the Panel of Prosecutors, and requested that Rep. Lordan Suan be recognized for the direct examination of the witness.

Atty. Michael Poa entered the same appearances on behalf of the Respondent, and requested that Atty. Lindon Bacquel be recognized for the Respondent.

PRESENTATION OF THE WITNESS

Representative Suan called on Ms. Marivic M. Pareja, Director, Legislative Information Resources Management Department, House of Representatives (HOR), to the witness stand, after which the Clerk of Court administered her oath.

OFFER OF TESTIMONY BY THE PUBLIC PROSECUTOR

The Presiding Officer. Representative Suan, you are recognized to make your offer.

Representative Suan. Your Honors, before we proceed with the offer of testimony, we respectfully manifest that we are distributing copies to all the senator-judges of our offer of testimony. And we also request that this be flashed on the screen for the convenience of the senators and the viewing public.

Your Honor, we only have four offers for the testimony of witness Pareja. Your Honor, the testimony of witness Marivic M. Pareja is being offered to prove the following:



No. 1, she has been an employee of the House of Representatives for the past 27 years, and has, for the last eight years up to the present, served as the service director of the Legislative Archives and Museum Management Service or Archives of the House of Representatives;

No. 2, the Archives is the official repository of all records of the House of Representatives including those that were transmitted to it by the Committee on Good Government and Public Accountability or CGGPA, in connection with the committee's hearings conducted from September 18, 2024 to December 9, 2024, and is responsible for the storage, preservation, retrieval, and release of certified true copies of such records and issuance of certifications;

No. 3, the identity of the following documents that were received by the Archives for storage and custody as transmitted by the Committee on Good Government and Public Accountability relative to its September 18, 2024, to December 9, 2024, committee hearings.

Your Honor, may we be allowed to flash on the screen these documents as I am enumerating them?

The Presiding Officer. Before you proceed, Counsel.

Let me be the one to do it. Would Attorney Lindon be willing to stipulate insofar as the current position of the witness in the House is concerned relative to offers one and two of the counsel?

Mr. Bacquel. Yes, Your Honor, stipulated.

The Presiding Officer. Second, Counsel, the Honorable Suan, you will only be presenting documents you enumerated in your offer namely P-I-26-a up to P-I-26-l-1. May I ask, insofar as your pre-marked documents P-I-3 up to P-I-25-i-1, these were not part of the documents you requested this Court to take judicial notice of, which we are more than willing to do because they are of the same nature? And since you are not presenting it to this witness, would you want to make the corresponding motion for us to take judicial notice of those documents? Again, to reiterate, P-I-3 up to P-I-25-i-1. Mostly, these are documents submitted to the House pertaining to the Ombudsman case and the counter-affidavits of some of the respondents in that case.

Representative Suan. Yes, Your Honor.

The Presiding Officer. Or you have no intention of presenting those documents anymore?

Representative Suan. We do, Your Honor, and judicial notice would be much appreciated.

The Presiding Officer. Kindly ask for it because it is not part of those that we can give judicial notice of in a mandatory manner. So, you are asking for judicial notice for the documents I mentioned?

Representative Suan. Yes, Your Honor, the Prosecution moves.

The Presiding Officer. Any objection on the part of the respondent? Again, just as to the existence of these documents, as to the fact that they were submitted before the House of Representatives, not as to the truth or relevance of these documents to these proceedings.

Counsel?

Mr. Bacquel. Stipulated, Your Honor. We have no objection as regards the motion to take judicial notice of these documents.

The Presiding Officer. Court therefore makes an order that the documents inclusive from P-I-3 to P-I-25-i-1 are all taken judicial notice of. Copies are therefore directed to be furnished to all the senator-judges for their information and reference. Again, as to the fact that these are part of the official records of the House, duly submitted to them, and that they form part of the records forming the House deliberations and hearings.

Now next, Honorable Suan, insofar as these documents you presented are concerned, again these are all submissions to the House, correct?

Representative Suan. Yes, Your Honor.

The Presiding Officer. May I hear from counsel for respondent, Atty. Lindon, are you willing to stipulate as to these documents that they intend to present through the witness, Attorney

Pareja? Again, only as to the fact that they were submitted to the House, part of the official records of the House, and that in the performance of her regular duties that these are within her custody, and that she performed her duties in the regular course of events.

Mr. Bacquel. We stipulate, Your Honor, as regards the transmittal of these documents to the department of the witness, Your Honor.

The Presiding Officer. And that she is in possession and custody of these documents?

Mr. Bacquel. Yes, Your Honor.

The Presiding Officer. As part of the official records of the hearings of the House?

Mr. Bacquel. Yes, Your Honor.

The Presiding Officer. Honorable Suan, since it has been stipulated by the counsel, would there be anything else? Again, just for clarity, Atty. Lindon, we are referring to previously marked documents P-I-26-a up to P-I-26-l-1. A total of 11 documents, I think you have been furnished with a copy?

Mr. Bacquel. No, Your Honor, we have not been furnished a copy.

The Presiding Officer. Kindly furnish opposing counsel with a copy. And it is also being flashed on the screen, Counsel.

Representative Suan. If I may, Your Honor.

The Presiding Officer. Yes, Honorable Suan.

Representative Suan. For the record, may we be allowed to identify these documents that defense has agreed to stipulate upon?

The Presiding Officer. Yes, you can.

Representative Suan. For the viewing public.

The Presiding Officer. You are referring to P-I-3 up to P-I-25-i-1?

Representative Suan. No, Your Honor.

The Presiding Officer. Which one?

Representative Suan. We are referring to P-I-26-a.

The Presiding Officer. The ones on the screen?

Representative Suan. Yes, Your Honor. For the viewing public and for the record.

The Presiding Officer. Yes, you may read the documents, all 11 of them, for the information of the counsel as well and the senator-judges while the counsel is going over it.

Representative Suan. Thank you, Your Honor.

The Presiding Officer. You may proceed, Honorable Suan.

Representative Suan. Thank you, Your Honor. So, the first document is the letter of Vice President Sara Z. Duterte to Honorable Joel Chua, Chairperson of the CGGPA dated September 23, 2024 where the vice president informed the committee that she will not attend the deliberations of the CGGPA and requested to terminate the inquiry.

The second document is the letter of Attorney Zuleika T. Lopez, undersecretary and chief of staff, OVP, to Honorable Joel R. Chua, chairperson, CGGPA, dated October 7, 2024 where Attorney Zuleika Lopez responded to the show-cause order issued by the CGGPA to explain her failure to attend or respond to the invitations of the committee.

No. 3, the letter of Edward D. Fajarda to Honorable Joel Chua, chairperson of the CGGPA, dated October 7, 2024 where Edward Fajarda responded to the show-cause order issued by the CGGPA to explain his failure to attend or respond to the invitations of the committee.

No. 4, letter of Attorney Rosalynne Sanchez, director, Administrative and Financial Service Office, OVP, to Honorable Joel Chua, chairperson of the CGGPA dated October 7, 2024, where OVP

Director Rosalynne Sanchez responded to the show-cause order issued by the CGGPA to explain her failure to attend or respond to the invitations of the committee.

Your Honor, we also manifest that these documents have been previously marked, and the current one has been marked as P-I-26-d as shown on the screen, Your Honor. As well as the previous documents, which were already previously marked.

So, the fifth document is the letter of Lemuel G. Ortonio, assistant secretary, OVP, to Honorable Joel R. Chua, chairperson CGGPA, dated October 7, 2024, where OVP Asec Lemuel Ortonio responded to the show-cause order issued by the CGGPA to explain his failure to attend or respond to the invitations of the committee. This was also previously marked as P-I-26-e.

Sixth document — the position paper of Attorney Lopez, *et al.*, dated November 5, 2024 where Attorney Lopez, Ms. Acosta, spouses Edward and Sunshine Fajarda, *et al.* refused to attend the CGGPA hearings and requested for termination of the inquiry by the CGGPA. This was previously marked, Your Honor, as P-I-26-f.

Seventh document — the position paper of OVP employees dated November 5, 2024, where the OVP employees refused to attend the CGGPA hearings and requested for termination of the inquiry by the CGGPA. This was previously marked as P-I-26-g.

Eighth document — the letter of Gina Acosta, Sunshine Charry Fajarda and Edward Fajarda to Honorable Joel Chua, chairperson of CGGPA, dated November 12, 2024, where Gina Acosta and spouses Edward and Sunshine Fajarda responded to the contempt order and arrest order for their failure to attend the CGGPA hearing. And this was previously marked as P-I-26-h.

Ninth — letter of Attorney Zuleika T. Lopez, undersecretary and chief of staff, OVP, to Honorable Joel Chua, chairperson, CGGPA, dated November 24, 2024, where Attorney Zuleika Lopez attempted to excuse her appearance in the CGGPA hearing. And this was previously marked as P-I-26-i.

No. 10, letter of Gamaliel A. Cordoba, chairperson, Commission on Audit, with subject: Compliance with *subpoena duces tecum*, dated August 16, 2024, addressed to Honorable Zaldy Co, chairperson, Committee on Appropriations, dated August 21, 2024, where COA informed the Committee on Appropriations of the COA's compliance with the *subpoena duces tecum* for OVP and DepEd documents. This was marked as P-I-26-k-1.

And last, the letter of Attorney Zuleika Lopez, Undersecretary and Chief of Staff, OVP, to Honorable Gamaliel Cordoba, Chairperson, COA, dated August 21, 2024, where Attorney Zuleika Lopez told the COA not to comply with the subpoena by the Committee on Appropriations and refuse submission of the OVP and DepEd documents. This was previously marked as P-I-26-l-1.

That is it, Your Honor.

The Presiding Officer. Thank you.

Comment, Attorney Lindon?

Mr. Bacquel. Your Honor, we confirm our stipulation as to the documents mentioned by the prosecution that these documents are transmitted to the Archives, and the Archives (is) the custodian of these documents, Your Honor.

The Presiding Officer. Having so stipulated, Counsel, any other thing that the—given that these are your four offers, I don't believe there is a need to present this witness before the Court.

Representative Suan. Your Honor, there is still the matter of the certification that the witness issued as to the identity of these documents—the identity and faithful reproduction of these documents. If Counsel will agree to stipulate, then that would be welcomed.

May we show the certification on the screen, Your Honor?

The Presiding Officer. It is not so much the certification. But I guess, without prejudice to proof being presented by Counsel for the Respondent that these are not faithful reproductions of the original on file, then we can presume regularity. Correct, Counsel?

Mr. Bacquel. We are amenable to that proposition, Your Honor.



The Presiding Officer. We can presume regularity, Honorable Suan. Unless proof, later on during cross at any stage of the trial, is presented regarding the inaccuracy of these documents, we can already—Counsel is willing to stipulate, thereby dispensing again with this witness.

Representative Suan. If counsel is willing to stipulate as to the certification, then for the record, may we have the certification marked as P-I-26? It has already been marked previously, Your Honor.

The Presiding Officer. It has been marked, yes.

Representative Suan. Yes. Just for the record.

The Presiding Officer. Thank you.

So, can we dispense with this witness, Honorable Suan?

Representative Suan. Yes, Your Honor.

The Presiding Officer. Ms. Pareja, you are excused. Kindly send our regards to Cesar over there.

Ms. Pareja. Thank you, Your Honors.

The Presiding Officer. And we thank you for your time and for coming over. Thank you for your patience as well.

Ms. Pareja. Thank you, sir.

REQUEST OF THE COUNSEL FOR THE PROSECUTION

Upon the request of Representative Chua, the Presiding Officer recognized Atty. Amando Virgil Ligutan, Counsel for the Panel of Prosecutors, for the presentation of the next witness.

SUSPENSION OF TRIAL

With the permission of the Court, the trial was suspended.

It was 10:27 a.m.

RESUMPTION OF TRIAL

At 10:31 a.m., the trial was resumed.

PRESENTATION OF WITNESS

Atty. Amando Virgil Ligutan called on Gina F. Acosta, former Special Disbursing Officer of the Office of the Vice President.

The Presiding Officer directed the Clerk of Court, through the Office of the Sergeant-At-Arms (OSAA), to escort Gina F. Acosta, former Special Disbursing Officer of the Office of the Vice President (OVP), to the witness stand. After which, the Clerk of Court administered her oath.

The Presiding Officer informed the witness and the Counsel for the parties that a nurse and doctor from the Senate Medical and Dental Bureau were on standby to provide medical attention should her blood pressure become elevated.

OFFER OF EVIDENCE

Mr. Ligutan. Mr. Presiding Officer, our Senator-Judges, the Prosecution presents the first hostile witness in this impeachment trial. *Ang testimonya ng kauna-unahang hostile witness sa impeachment trial na ito* is being presented to prove *ang mga sumusunod:*

Layon ng Prosecution na ipresenta o iharap si Gina Acosta bilang isang hostile witness. Ibig sabihin, hindi po siya testigo pabor sa Prosecution.

Pangalawa, si Ms. Acosta ay nanunungkulan ngayon bilang Vice Presidential Staff Officer VI sa Office of the Vice President.

Pangatlo, siya ay nagsilbing Special Disbursing Officer or SDO ng Office of the Vice President noong taong 2022 at saka 2023.

Pang-apat, siya rin ang nagsilbing SDO para sa confidential funds noon ni Mayor Sara Duterte sa Davao City mula taong 2019 hanggang 2022.

Panglima, siya ang naging staff member sa Davao City Administrator's Office sa pagitan ng mga taong 2016 at 2022 at ng Davao City Budget Office sa panunungkulan noon ni Mayor Sara Zimmerman Duterte.

Pang-anim, sa last quarter o huling tatlong buwan ng 2022, ginastos ng OVP o Office of the Vice President ang halagang P125 million na confidential funds sa loob lamang ng labing-isang araw sa ilalim at pamamahala at pangangasiwa ng Bise Presidente nang walang liquidation, nang hindi kumpleto o walang sapat na dokumento na nagpapatunay sa pagbabayad.

Pampito—rather, pangwalo. Inatasan ng bise presidente ang witness na i-encash ang kabuuang halaga na P500 million or kalahating bilyon noong ika-20 ng Disyembre 2022, ika-6 ng Pebrero, ika-25 ng Abril, at ika-14 ng Hulyo 2023.

I skipped No. 7, sorry. Sa tatlong taon, sorry, sa three quarters ng 2023, ginastos ng OVP ang halagang P375 million na confidential funds sa ilalim ng pamamahala at pangangasiwa ng Bise Presidente nang walang liquidation, nang hindi wastong liquidation, rather, nang hindi kumpleto o walang sapat na mga dokumento na nagpapatunay sa pagbabayad.

Let's go to No. 9. Ang lahat ng confidential funds na inilaan sa OVP ay na-withdraw in cold cash na nagkakahalagang kalahating bilyong piso noong Disyembre 20, 2022, February 6, April 25, at July 14, 2023.

Pangsampu, inutusan ni VP Sara na ibigay ang kabuuang half a billion pesos, P500 million in cold cash, sa security officer ng OVP na si Colonel Lachica na hindi isang accountable officer — isang paglabag sa batas sa Joint Circular 2015-01.

Panlabing-isa. Ang ginagawang disbursements ng confidential funds sa ilalim ng Office of the Vice President—ang ginawang disbursements ay maraming bahid o namumutakti sa pagsuway at paglabag sa Joint Circular 2015-01.

Labindalawa. Bigo ang Respondent, Vice President, na ma-liquidate ang kabuuang halaga na half a billion pesos, na pera ng bayan, P500 million, alinsunod sa demand o kahingian ng Joint Circular 2015-01.

Panglabingtatlo. Dahil dito maituturing na ginastos ng Bise Presidente sa pansariling gamit at kapakinabangan ang half a billion pesos na pera ng bayan na confidential funds ng Office of the Vice President.

Lastly, Your Honor, please, tutukuyin ng witness ang mga dokumentong may kaugnayan sa mga alegasyong nakasaad sa Articles of Impeachment. That is for the offer.

The Presiding Officer. Comment Atty. Baquel?

Mr. Bacquel. Your Honor, for purposes number two and three, we are willing to stipulate. We note that for purpose three this was already part of the admissions of the parties in the pre-trial order. And it is contained in part 1A item 2.8 of the pre-trial order, Your Honor.

For purpose number four and five as regards the confidential funds in Davao City and the position of the witness as SDO of Davao City we would like to object on the ground of irrelevance, Your Honor. Considering that, for the simple reason, that the confidential funds in Davao City are not part of the allegations in the Articles of Impeachment. So, there is really no fact in issue to be proved by the testimony of the witness, Your Honor.

And for all the other purposes, Your Honor, these are subject to cross examination.



The Presiding Officer. What does Atty. Ligutan say with respect to Counsel's stipulation to your second and third offer?

Mr. Ligutan. The stipulation is well taken, Your Honor, please so therefore it is established *na si Ms. Acosta ay ngayon nanunungkulan bilang Vice Presidential Staff Officer VI saka nagsilbi siya bilang special disbursing officer noong taong 2022 at saka 2023.*

However, Your Honor, please, *iyong punto na walang relevance iyong naging pagsisilbi as SDO para sa confidential funds mula 2019 at saka 2022 at saka*, I think, *iyon iyon hindi ba?* Your Honor, please, we beg to disagree. It is very much relevant—very much relevant in today's proceedings, considering, Your Honor, please, that it is her experience as the SDO of Davao City in those inclusive years that led the Vice President to also bring her to the Office of the Vice President and do the things they did in Davao City this time with the money of the Office of the Vice President. That is very much relevant to the prosecution's case, Your Honor, please.

Mr. Bacquel. May I respond, Your Honor.

The Presiding Officer. Yes. Before the Presiding Officer makes a ruling, Counsel.

Mr. Bacquel. Yes, Your Honor, the rebuttal presented by the Prosecution is wrong considering there is no such allegation in the Articles of Impeachment, Your Honor. Moreover, Your Honor, it is clear in the ruling of the Supreme Court in Duterte versus House of Representatives that the basis of any charge must be for acts committed in relation to the impeachable office and within the term of the impeachable officer, Your Honor.

Mr. Ligutan. Your Honor, can I make a quick rebuttal to the last point.

RULING OF THE CHAIR

The Presiding Officer. No need, Counsel. The Presiding Officer will make a ruling.

The Court will allow it given that it is for the purpose of establishing pattern and/or behavior on the part of the witness. But to be clear, that whatever she says with respect to acts committed by her in relation to the Vice President now while she was a Mayor in Davao City is not part of this impeachment trial and will not in any way add to the charges that have been filed and are pending before this Court under the four Articles of Impeachment, as previously ruled by the Chair in previous requests for subpoena, for example.

However, may I ask Counsel further to abbreviate the proceedings? Attorney Bacquel, are you willing to stipulate that the witness is a hostile witness and therefore Counsel may ask leading questions already instead of qualifying the witness as hostile witness?

Mr. Bacquel. No, Your Honor, the Prosecution must first qualify the witness as hostile, Your Honor.

The Presiding Officer. Then qualify her Attorney Ligutan.

Mr. Ligutan. We will, we shall.

The Presiding Officer. Qualify her. You may proceed when you're ready.

DIRECT EXAMINATION OF THE WITNESS

Mr. Ligutan. Madam Witness, *Maayong buntag.*

Ms. Acosta. *Maayong buntag.*

Mr. Ligutan. Ma'am—

Ms. Acosta. Excuse me.

Mr. Ligutan. Your Honor, *puwede ba magpaduol gamay sa atong mikropono?* Can you draw closer to the microphone?

Ms. Acosta. Okay. okay. *Salamat po.*



Mr. Ligutan. How are you, Madam Witness?

Ms. Acosta. Okay, okay, *dyutay*.

Mr. Ligutan. Okay, okay *ug dyutay*. *Ibig sabihin*, "I am a bit fine." Madam Witness, *naay tubig*, we have water.

Ms. Acosta. Excuse me, Sir.

Mr. Ligutan. *Opo*.

Ms. Acosta. Sir, *puwede dili bugnaw na tubig?*

Mr. Ligutan. Okay. Your Honor, *ingon ng witness, sabi po ng witness*, "*Pupuwede bang hindi po malamig iyong tubig?*"

The Presiding Officer. The OSAA is directed to kindly give her— Ma'am Gina, you prefer warm water? *Hindi naman daw po malamig iyan pero baka dahil sa aircon na lang lumamig.*

Ms. Acosta. *Ano lang po, Sir, iyong kung mayroong maligamgam mas better po.*

The Presiding Officer. *Maligamgam na lang po. Pakibigyan na lang po ng maligamgam.*

Ms. Acosta. *Salamat po.*

The Presiding Officer. You're welcome, Ma'am.

You may proceed, Attorney Ligutan.

Mr. Ligutan. *Salamat*. Ma'am, *Maayong buntag*. Why are you here today, if you know?

Ms. Acosta. *Naa ko diri tungod sa akong subpoena...*

Mr. Ligutan. Okay.

Ms. Acosta. *...na gipatawag ko diri sa Senado, petsa August—*

The Presiding Officer. With your permission, Attorney Ligutan, *kung papahintulutan ninyo po*, Ms. Gina, *puwede po gamitin po ninyo para mas maunawaan ng mas nakararami, Ingles o Pilipino sa pagsagot?*

Ms. Acosta. Your Honor, *puwede po haluan ng Bisaya*, Your Honor?

The Presiding Officer. *Sige po, basta ma-translate ni Attorney Ligutan without any objection from the Respondent iyong ibang mga kataga o salita na gagamitin ninyo.*

Mr. Bacquel. Your Honor—

The Presiding Officer. Yes.

Mr. Bacquel. Your Honor, may we request an interpreter from this Honorable Court, if this Honorable Court would allow so that the Defense would be able to easily understand the statements of the witness?

The Presiding Officer. We have a senator-judge who can interpret but I doubt if I can do that or will do that.

Mr. Ligutan. Okay. Your Honor, I have a proposition.

Ma'am Acosta, *naalala ko* when you testified before the Committee on Good Government *sa House of Representatives*. Ma'am, we spoke in Tagalog then *siningitan natin ng our great Visayan language 'no?* Ma'am, *pero po para po mas mabilis, kung pupuwede po*, let us try as much as we could *po* to speak Tagalog, *kung pupuwede lang ha*, and then if you really have to speak *Bisaya*, then of course *hindi po pinagbabawal iyan*—we should be proud of it—*pero kung pupuwede po, Tagalog po tayo.*

Ms. Acosta. *I-try po nako, sir. I will try my best po.*

Mr. Ligutan. Let's try our best *po*, Madam.

The Presiding Officer. *Sige*, Ma'am, while we are looking for a Court-appointed or selected

translator to get an official translation. *Hanggang kaya, Ma'am, pero kung hindi po kayang gamitin ang Ingles o wikang Pilipino, gamitin ninyo po ang Bisaya o Cebuano. Subukan po naming unawain at i-interpret.*

Mr. Ligutan. All right.

The Presiding Officer. You may proceed, Attorney Ligutan.

Mr. Ligutan. *Salamat.*

Ma'am, sinabi mo nandito ka kasi nga pina-subpoena ka ng Impeachment Court, hindi ba po ba?

Ms. Acosta. Yes po.

Mr. Ligutan. *Ma'am, na-mention din, nasabi rin na ikaw ay isang Special Disbursing Officer, hindi lang sa Davao City pati na rin sa Office of the Vice President. Iyong tanong now is, what funds—among klaseng pondo po iyong dini-disburse ninyo bilang isang Special Disbursing Officer po?*

Ms. Acosta. Confidential funds po, Your Honor.

Mr. Ligutan. Confidential funds. So na-mention mo iyong confidential funds.

Now, sinabi mo, Ma'am, na ikaw ay nandito kasi nga napa-subpoena ka. Ma'am, iyong tanong is, ito po ba ang unang pagkakataon na kayo ay napa-subpoena para tumestigo?

Ms. Acosta. This is my second time—pangalawang time na po ito, Your Honor.

Mr. Ligutan. And then, 'pag sinabi ninyo pong pangalawang time, Ma'am, kailan iyon? Kailan iyong unang pagkakataon?

Ms. Acosta. Iyon pong sa House of Representatives, Your Honor.

Mr. Ligutan. Now, House of Representatives. Maaalala ninyo iyong petsa, Ma'am, kailan kayo nag-appear before the House of Representatives?

Ms. Acosta. November 2025, November 2025.

Mr. Ligutan. Taon po is—among taon?

Ms. Acosta. 2025.

Mr. Ligutan. Hindi po 2024?

Ms. Acosta. Twenty—sandali lang, sir, ha.

Mr. Ligutan. Oh, sige, sige. Anyways, Ma'am, basta sinasabi ninyo po secondary na po iyong taon because it's on record naman, pero nasabi ninyo ito po iyong pangalawang pagkakataon na kayo ay naimbitahan po na tumestigo kasi po may subpoena.

Now, iyong tanong, Ma'am, is—this is preliminary question—Ikaw ba ay nakatanggap na ng isang reklamong kriminal or administratiba na may pagkakaugnay sa paggamit ng confidential funds?

Mr. Bacquel. Leading. Your Honor.

Mr. Ligutan. Exactly. I just said preliminary, Your Honor.

The Presiding Officer. Preliminary, Counsel. Witness may answer.

Ms. Acosta. Wala, Your Honor.

Mr. Ligutan. Aha. So sinasabi mo, Ma'am, na wala pa kayong natatanggap na reklamo. Iyon po iyong sagot ninyo, hindi ba, Ma'am? Ipinapakita ko ngayon, Ma'am, iyong isang counter-affidavit. Okay.

Your Honor, I move that the Prosecution Counsel, Attorney Jay, be allowed to confront the witness with the documents—that is a continuing motion because we'll be doing that for the rest of the remainder of the testimony, Your Honor.

The Presiding Officer. Assisting counsels from both parties may approach.

Mr. Bacquel. Your Honor.

Mr. Ligutan. Yes.

The Presiding Officer. Yes, Attorney Bacquel?

Mr. Bacquel. May we know the purpose of the questioning of the Prosecution?

Mr. Ligutan. Your Honor, I'm tempted to state that, but we're leading there; we are about to establish the ground to make this witness a hostile witness. May we not be preempted, Your Honor?

The Presiding Officer. You answered the query of Counsel. You may proceed.

Mr. Ligutan. All right.

Now, Your Honor, please, this witness, Madam Acosta, is facing a complaint, together with the Vice President, exactly because of their misuse of confidential funds. Your Honor, it is stated in the witness's counter-affidavit that the Vice President is not responsible or should not be held liable for any misuse of confidential funds. Your Honor, that interest is directly adverse to the Prosecution's case before this Impeachment Court. The Prosecution seeks to prove otherwise that this witness, that the Vice President rather, is responsible for the illegal disbursement of confidential funds.

Therefore, if on one hand, *sinasabi ng testigo sa counter-affidavit niya na walang pagkakasala iyong Vice President sa maling paggamit ng confidential funds*, that's on one hand. On the other hand *naman, sinasabi ng Prosecution, Your Honor, please, na "No, hindi. May ebidensya, it's so clear na kailangan, kailangang managot iyong vice president for misusing public funds.*

Now this is the time, Your Honor, please, okay, if the good Counsel will allow, with the presentation of a counter-affidavit by the witness stating under oath that the Vice President did not misuse confidential funds in direct conflict with the Prosecution's case, Your Honor, please, we now invoke Section 13, Rule 132 of the Revised Rules on Evidence, if the court may allow.

Your Honor, according to Section 13, Rule 132— A witness may be considered as unwilling or hostile if so declared by the court upon adequate showing—*Iyon iyong una po*, Your Honor, adverse interests; adverse interests.

Ms. Acosta, the witness, has an adverse interest in this case, as her position, as shown *sa counter-affidavit niya*, is clearly inconsistent with the position of the Prosecution that called her as a witness. The Prosecution presents her to prove that the Respondent misappropriated confidential funds. *Sa kabilang panig, sinasabi ni Ms. Acosta iyong Vice President complied sa lahat ng rules at saka batas sa paggamit ng confidential funds. Sinasabi ni Ms. Acosta, hindi nag-misuse si Bise Presidente Sara Duterte ng kahit isang sentimo ng confidential funds.*

We now invoke the case of *People vs. Che Chun Ting*, G.R. No. 130568-69, dated March 21, 2000. Supreme Court dealt with a hostile witness *kasi nga adverse iyong interest doon. Sinasabi sa kasong iyan*, having an adverse interest meant—ito, that the position or interest was adverse to what the party called her wanted to establish or prove. *Iyon po iyong batayan ng Supreme Court kung iyong posisyon ng isang witness is salungat sa posisyon ng partidong nagpapatawag sa kaniya, sa kasong iyan sabi ng Supreme Court established na po iyong requirement ng adverse interest sa ilalim ng Rules of Court.*

The Presiding Officer. Comment, Atty. Bacquel?

Mr. Bacquel. Your Honor, the Respondent respectfully submits that the adverse interest must be shown by the Prosecution through an examination of the witness and not through a mere motion or manifestation, Your Honor.

The Presiding Officer. They just did, Counsel, by showing the position taken by the witness in her counter-affidavit.

Mr. Bacquel. Additionally, Your Honor, the Defense also submits that the mere fact of the

pendency of the criminal case does not satisfy the requirement of adverse interest under the Rules of Evidence considering that it apparently constitutes to a mere expectation that the witness will testify unfavorably to the Prosecution, which is not within the ambit of the rules considering that the declaration of a witness as hostile presupposes that the Prosecution would face difficulty in obtaining answers from the witness on account of such adverse interest, Your Honor.

The Presiding Officer. Allow the Presiding Officer.

Ms. Gina, *saan po kayo nagtatrabaho ngayon? Sa Office of the Vice President, tama po?*

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. *Sino po ang boss ninyo sa Office of the Vice President?*

Ms. Acosta. Si Vice President Sara Duterte.

The Presiding Officer. *Permanente po ba kayo doon o co-terminus?*

Ms. Acosta. Co-terminus po, Your Honor.

The Presiding Officer. So, *pag wala na si VP Sara doon sa OVP, wala na rin po kayo?*

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. So, *'pag na-impeach si VP Sara o matanggal siya, wala na rin po kayong trabaho doon?*

Ms. Acosta. Wala na po akong trabaho sa OVP.

The Presiding Officer. Sa OVP, *siyempre. Opo. So, maaalis kayo sa OVP, tama po?*

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. In addition to the ground raised by Atty. Ligutan that witness has taken a position and by virtue of her counter-affidavit filed before the Office of the Ombudsman, the Court hereby declares the witness to be a hostile witness under and in accordance with Rule 132, Section 13. However, for the information of the senator-judges and the public and counsels as well, this only gives Atty. Ligutan the right to ask leading questions, still not allowed to ask misleading questions. As I know, Atty. Ligutan is well aware of the distinction.

Mr. Ligutan. Yes, Your Honor.

The Presiding Officer. Okay. To abbreviate the proceedings, the witness is so declared, and Attorney Ligutan may ask leading questions of this witness. So ordered.

Mr. Ligutan. *Maraming salamat.*

Madam witness, *ngayon, kayo po, Ma'am, ay isang hostile witness na, so Ma'am, I can now ask you questions. Sorry for a brief Bisaya, pero Ma'am, wala ta nag-away ha?*

Ms. Acosta. *Opo.*

Mr. Ligutan. We are not enemies. Okay. *Andito po tayo sa isang bagay lang. Ano iyong totoo? Unsay tinuod, unsay kamatuoran?* Let's proceed. Madam witness, you already mentioned—in fact, established, *na bago ka naging SDO para sa Office of the Vice President, ikaw rin ang SDO na nagha-handle ng confidential funds po para sa Davao City. Naalala mo po ba iyon?*

Mr. Bacquel. Your Honor—

Mr. Ligutan. That's preliminary, Your Honor.

The Presiding Officer. Attorney Bacquel.

Mr. Bacquel. We are constrained to, again, object on this line of questioning on the ground of relevance, Your Honor, considering that confidential funds of Davao City are not mentioned or even alleged in the Articles of Impeachment. Your Honor. Nowhere in the Articles of Impeachment does it state that the confidential funds pertaining to Davao City are at issue in this case, Your Honor.

Mr. Ligutan. Can I respond to that, Your Honor, please, if the Court may allow?

The Presiding Officer. The Chair already made a ruling in regard to that, Attorney Bacquel. We will allow it to establish pattern and/or behavior, but not to add to the Articles of Impeachment against the Vice President. That is quite clear.

Mr. Ligutan. *Opo.*

The Presiding Officer. Not only to counsels, but also to the senator-judges and for the public as well. But the Chair would like to note, if you would like to make one, a continuing objection insofar as this line of questioning is concerned.

Mr. Bacquel. Yes, Your Honor.

The Presiding Officer. Continuing objection of Counsel to this line of questioning is hereby noted. Attorney Ligutan, you may proceed.

Mr. Ligutan. Thank you so much. We are also—we will be continually invoking *isang rule sa Rules of Procedure*, Rule 130, Section 35. Exactly, I think that's what the Honorable Presiding Officer had in mind, Rule 130, Section 35—allowing presentation of evidence on previous acts to prove specific intent, knowledge, identity, plan, system, scheme, habit, custom, usage or the like. Or *siguro sa isang salita na maiintindihan ng ating mga kababayan*, "pattern." May pattern. May I proceed, Your Honor?

The Presiding Officer. You may proceed, Counsel.

Mr. Ligutan. Thank you. So therefore, madam, *iyong pagha-handle po ng confidential funds, hindi na bago sa inyo? Tama po ba?*

Ms. Acosta. *Ano po*, Your Honor, *pamilyar lang po ako sa pagiging SDO—Special Disbursement Officer.*

Mr. Ligutan. SDO. All right. Now, and Ma'am, *pamilyar din po kayo sa mga dokumento or reports na kailangang ihanda bago po magamit ng isang opisina gaya ng Office of the Vice President ng confidential funds. Tama po ba?*

Ms. Acosta. *Opo*, Your Honor.

Mr. Ligutan. *Opo.* Thank you so much, Ma'am. In fact, madam, you are familiar with Joint Circular 2015-01. In particular, *nakasaad diyan*, paragraph 4.2—may we be allowed, Your Honor, please. *Ayan*, Ma'am, *nakasulat po sa paragraph 4.2 ng Joint Circular 2015-01 na lahat ng allocations ng confidential funds dapat supported by iyong unang dokumento*, Ma'am, *nakasulat diyan*, Physical and Financial Plan. *Pamilyar po kayo sa provision na ito*, Ma'am, *hindi ba?*

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. Okay, Ma'am. *Salamat po.* Now, according *sa provision na ito*, *ang pagdi-disburse*, okay, *ang paggagamit*—Ma'am, what's Bisaya for "disbursement," *kung alam ninyo po? Ano ba iyong Bisaya? What term do we use—Cebuano-Bisaya for "disbursement"?*

Ms. Acosta. *Ang pag-release.*

Mr. Ligutan. *Pag-release.* Okay. *Kailangan base iyan sa Physical and Financial Plan.* Okay. Therefore, *hindi po puwede na may mare-release na confidential funds kung walang tinatawag na PFP, 'no, Physical and Financial Plan, tama po ba?*

Ms. Acosta. *Tama po*, Your Honor.

Mr. Ligutan. *Tama po*, ma'am. *Hindi po ba*, ma'am, *kinukumpirma mo na para sa ikaapat at huling quarter ng 2022, para mai-release iyong P125 million na confidential funds, sinasabi ninyo, nag-comply naman iyong Office of the Vice President sa kinakailangang Physical and Financial Plan. Tama po ba?*

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. *Tama po ba?* Now, in fact, ma'am, *pumirma ka at nagsumite kayo ng isang Physical and Financial Plan na iyong petsa is December 13, 2022. Tama po ba*, ma'am?

Ms. Acosta. *Hindi ko maalaala exactly ang number*, Your Honor, *pero naghimo mi og Physical Financial Plan.*

Mr. Ligutan. “*Naghimo*,” Your Honor, means—

The Presiding Officer. *Gumawa sila ng Physical and Financial Plan.*

Mr. Ligutan. Yes. Thank you so much.

Now, *so para po maalaala natin*, ma’am, ‘*no, ipapakita natin ngayon iyong isang Physical and Financial Plan—okay—marked as P-I-14-1 for the Prosecution.*

Show the document on the screen and to the witness.

Ma’am, *iyong Physical and Financial Plan pinirmahan po ni Rosalynne Sanchez at saka ni Sara Z. Duterte. Tama po ba?*

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. Now, *maaalala mo now iyong dokumentong ito. Tama po ba?*

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. And then *base sa dokumentong ito*, ma’am, *sinasabi diyan, ikaw iyong tinatawag natin na Project accountable officer. Tama po ba?*

Ms. Acosta. *Opo*, Your Honor.

Mr. Ligutan. In fact, ma’am, you will also confirm *na pinirmahan ninyo po iyong PFP as the Project accountable officer. Nakasulat diyan*, ma’am, *oh, ma’am. Hindi ba*, ma’am, *nakasulat diyan...*

Ms. Acosta. *Opo.*

Mr. Ligutan. ... “Prepared by”?

Ms. Acosta. Yes.

Mr. Ligutan. *Ibig sabihin, kayo po*, ma’am, *iyong nag-prepare ng PFP.*

Ms. Acosta. *Kasama ko—*

Mr. Ligutan. Based *sa* document, based *sa* document.

Ms. Acosta. Yes, Your Honor. *Pero during paghimo ani*, Your Honor, *kasama ko po ang aming security officer*, Your Honor.

Mr. Ligutan. Yes. By “*paghimo namo ani*,” it means, “While we were making this, I was with the—our security officer.”

Ms. Acosta. Sir.

Mr. Ligutan. Ma’am, *tama po iyong interpretation ko, hindi po ba?*

Ms. Acosta. *Kauban—kasama ko po ang aming security officer*, Your Honor, *kasi sa kaniya po ako naghihingi ng mga inputs or guidelines ...*

Mr. Ligutan. Yes, ma’am.

Ms. Acosta. ... in preparation for the Physical Financial Plan.

Mr. Ligutan. Yes, ma’am. *Maraming salamat* for that but we will go into that, ma’am, ha, we will go into that. *Aabot po tayo sa puntong iyan. Okay po*, ma’am?

Ms. Acosta. Yes, sir.

Mr. Ligutan. Now, ma’am, *bilang po* Project accountable officer, *ikaw—nakasulat diyan ikaw iyong nagprepara ng plano, ikaw din*, being the officer—accountable officer, *iyong naglista ng mga confidential funds—ma’am, iyong paglista*, ma’am, *ha, iyong tanong ko, ha, paglista ng confidential funds, programs, and activities na nasusulat sa Physical and Financial Plan. Hindi po ba?*

Ms. Acosta. *Puwede usabon*, Your Honor, *ang question?*

Mr. Ligutan. Okay. *Ako usabon*, ma’am, ‘*no. Bilang* Project accountable officer, the one who prepared the plan, *ikaw din iyong naglista. Iyong naglista*, ma’am ...

Ms. Acosta. *Nagsulat?*

Mr. Ligutan. ... *sa plano, sa plan, ano iyong mga programa at saka activities. Iyong paglilista po, kayo po iyon, hindi ba, as the Project accountable officer, the one who prepared the plan? Tama po ba?*

Ms. Acosta. *Tama po, with the tulong po ng security officer, mga inputs.*

Mr. Ligutan. Yes, ma'am, we'll go into that. Ma'am, let's continue.

Now, *makikita natin sa plano, ma'am, na inilista ninyo under the column Programs, with an "s"; Activities, with an "s"; Projects, with an "s", PAP. Ma'am, ano iyong nakasulat diyan? Ano iyong programa sa mga programs, activities, projects? Anong programa iyong isinulat ninyo diyan? Good Governance Program.*

Ms. Acosta. Program. Sorry, Your Honor, *ha, hindi ka—Dili kaayo ko—sorry. Dili kaayo ko kabasa, Your Honor, kay gagmay kaayo ang letra.*

Mr. Bacquel. Can the prosecution be confronted the document?

Mr. Ligutan. [off-mic] Okay, ma'am. This is what we will do.

The Presiding Officer. The witness said, *hindi niya kayang basahin dahil maliit iyong mga letra.*

Mr. Ligutan. [off-mic] Yes.

Ms. Acosta. Okay.

Mr. Ligutan. [off-mic] So, you can peruse the document even without. Okay. *Pupuwede ba ... ma'am, nandiyan, ma'am, hindi ba? Good—*

The Presiding Officer. Attorney Ligutan, if you're approaching the witness, kindly bring the mic *para hindi mahirapan iyong ating gumagawa ng TSN.*

Mr. Ligutan. All right. Now, *ma'am—Okay na po ba?*

Ms. Acosta. Okay po, Your Honor.

Mr. Ligutan. Ma'am, now, *iyong tanong is, ano ba itong Good Governance Program na ito? What is this all about?*

Ms. Acosta. *Ito po iyong mga programa ng opisina ng Office of the Vice President na nakalista na po sa buong taon.*

Mr. Ligutan. *Oo.*

Ms. Acosta. *Halimbawa po, iyong Libreng Sakay, iyong Plant a Tree Millionaires, Four Million—nakalimutan ko, sir.*

Mr. Ligutan. Okay.

Ms. Acosta. Libreng Sakay, *iyong financial, medical and—medical assistance po, Your Honor.*

Mr. Ligutan. Okay. So, ma'am, *iyon, iyon iyong mga sinasabi mong mga programa. Now, under this program, iyon iyong sinasaba mo, hindi ba, ma'am? Sino po iyong nag-conceptualize? Sino pong bumuo o nag-isip ng programang ito?*

Ms. Acosta. *Ang opisina po ng Office of the Vice President, Your Honor, with the coordination po sa aming security officer.*

Mr. Ligutan. Now, *kailan po nabuo ang planong ito? Sa security officer naman iyong nag-conceptualize, hindi po ba, ng mga plano na ito?*

Ms. Acosta. Repeat, Your Honor, *sa question.*

Mr. Ligutan. *Sino iyong—Ito iyong tanong: Kailan nabuo or napag-isipan or na-conceptualized itong Good Governance Program? Kailan?*

Ms. Acosta. *Sa pag ano na, Your Honor, paghimo na ni—paghimo na og—pag-request na ni Ma'am VP ng confidential funds.*

Mr. Ligutan. When the Vice President requested for confidential funds.

Ma'am, *may mga pag-aaral ba or pagsasaliksik na ginawa ang inyong opisina* to come up with the program?

Ms. Acosta. *Wala akong personal knowledge sa ana, Your Honor.*

Mr. Ligutan. *Wala kang personal knowledge. May proseso ba or criteria na ginamit to select of all programs, Good Governance Programs? Wala po?*

Ms. Acosta. *Wala ako kabalo, Your Honor.*

Mr. Ligutan. By "*walay kabalo*", it means "*wala po akong personal knowledge*". *Wala po akong alam.* Ma'am—We are fine here, okay.

Let's continue, Your Honor.

[cell phone ringing]

The Presiding Officer. You may continue, Counsel, but the public is reminded to kindly put their phones in silent mode.

Mr. Ligutan. Okay. Now, *ma'am, sinabi ninyo, ma'am, na wala po kayong alam, wala kayong personal knowledge, kasi po hindi naman po ikaw iyong nag-identify ng mga programa at saka mga activities na nakasulat sa 2022 Physical and Financial Plan. Tama po ba?*

Ms. Acosta. *Tama po, Your Honor.*

Mr. Ligutan. In fact, *ma'am*, you will admit, confirm, *na noong November 25, 2024, iyong pagdinig ng Committee on Good Government and Accountability*, you merely asked a security Officer, Colonel Lachica, what to state in the Physical and Financial Plan as confidential activities in relation *sa paggamit ng Office of the Vice President ng confidential funds.*

To aid your memory, Your Honor, please, we are showing on the screen, on the screen, a portion of the transcript of the Committee on Good Government and Accountability hearing, November 25, 2024, where *sinasabi ng witness* that all information that will be reflected in the Physical and Financial Plan of the Office of the Vice President, which she prepared, *galing lang sa isang security officer, si Colonel Lachica.*

Ms. Acosta. *Siya po ang nagbigay sa akin ng inputs, Your Honor, o mga guidelines po, Your Honor, kung ano po ang mga activities in relation po sa pag-conduct po ng confidential operations or activities.*

Mr. Ligutan. Okay. *Salamat, ma'am.*

Ma'am, who is this Colonel Lachica?

Ms. Acosta. *Si Colonel Lachica po ay siya po ang commanding officer ng aming VPSPG at siya din ang aming security officer ng Office of the Vice President.*

Mr. Ligutan. *Si Colonel Lachica, iyong full name niya po ay si Col. Raymond Dante Lachica. Tama po ba?*

Ms. Acosta. *Mao na iyang full name, Your Honor.*

Mr. Ligutan. *Iyon iyong full name niya.*

Now, thank you so much. *Daghang salamat, ma'am.*

Now, *hindi po ba na aside po na si Lachica, Colonel Lachica, iyong magsasabi sa iyo ano iyong isusulat sa plan, hindi po ba na the same Colonel Lachica iyong nagbibigay sa iyo ng mga listahan ng object of expenditures where the confidential funds will be used?*

Ma'am, before you answer that, to remind you, *ito naman Page 126 po ng transcript of the CGGA hearing dated November 25, 2024. Nakasaad diyan—inamin ninyo under oath, ma'am—na iyong nagbibigay sa iyo ng listahan ng object of expenditures paano gagamitin iyong confidential funds, ikaw po iyong nagprepara pero si Colonel Lachica iyong nagsasabi sa iyo sa mga listahan ng paggagamitan ng confidential funds, based on that transcript. Tama po ba?*

Ms. Acosta. Sorry, Your Honor, *nalibog ko sa imong question. Taas man kaayo.*

Mr. Ligutan. We have to clarify. By "*nalibog*," ibig sabihin, "confused."

Ms. Acosta. *Na-confuse po.*

Mr. Ligutan. *Na-confuse po.*

Now, ma'am, *base po sa November 25, 2024 hearing, inamin ninyo po na si Colonel Lachica* *iyong nagbibigay sa iyo ng listahan ng object of expenditures for confidential funds. Tama po ba?*

Ms. Acosta. Object of expenditures. Yes, Your Honor, *sa kaniya galing.*

Mr. Ligutan. Yes, Your Honor. *Daghang salamat, ma'am.*

Ma'am, *ito iyong tanong, ma'am. Isn't it po na iyong paggagawa, pagprepara ng plano at tsaka iyong pagdidetalye, pagdidetalye ng objects of expenditures, hindi po ba trabaho ninyo iyon bilang ...*

Mr. Bacquel. Argumentative.

Mr. Ligutan. Wait, wait. Not yet, not yet.

... special disbursing officer, being the project accountable officer as indicated in the plan prepared by you? *Hindi po ba dapat kayo iyon?*

The Presiding Officer. Counsel for the Respondent, Attorney Bacquel.

Mr. Bacquel. We respectfully object, Your Honor.

Mr. Ligutan. What ground?

Mr. Bacquel. On the ground of being compound and argumentative, Your Honor.

The Presiding Officer. Objection is overruled. Witness may answer.

Pakisagot po iyong tanong, Ma'am Gina.

Ms. Acosta. Your Honor, *puwede po usabon ang imong pangutana?*

Mr. Ligutan. Yes, ma'am.

Ms. Acosta. *Taas man gud, Your Honor.*

Mr. Ligutan. Yes, ma'am. I will, ma'am. *Para kay Gina Acosta, I will do that, ma'am.*

Ms. Acosta. *Salamat.*

Mr. Ligutan. *Way sapayan. Okay now. Hindi po ba na iyong pagda-draft ng Physical and Financial Plan, trabaho ninyo bilang project accountable officer as indicated by the note "Prepared by" in the plan? Hindi ba trabaho ninyo dapat iyan?*

Ms. Acosta. *Trabaho ko po iyan, with the inputs or guidelines sa aming security officer, Your Honor.*

Mr. Ligutan. Yes, ma'am. Ma'am, *hindi po ba na iyong paglilista ng expenditures, ma'am, sa planong iyan as indicated by the note "Prepared by", you being the project accountable officer, hindi po ba trabaho ninyo rin po iyan?*

Mr. Bacquel. Objection, Your Honor, asked and answered.

Mr. Ligutan. *Wala, iba iyon. Iyong kanina was drafting. Now is detailing of the list of expenditures.*

The Presiding Officer. Kindly address the Court, Counsel. Witness may answer.

Ms. Acosta. *Ano po iyon, sir?*

Mr. Ligutan. Okay. Ma'am, *kanina sinabi mo iyong pagpre-prepara trabaho ninyo with inputs ni Colonel Lachica. Iyong tanong now is, iyong paglilista, pagde-detalye ng expenditures, opo, hindi ba trabaho ninyo rin po iyan as SDO/project accountable officer as indicated by the note "Prepared by"?*

Ms. Acosta. *Ang pagsulat po, ako, pero ang mga expenses po kung unsa ang gamiton kay, sir ...*

Mr. Ligutan. Colonel Lachica.

Ms. Acosta. ... *sa kay security officer po kasi siya po ang mag-i-implement ng various confidential operation activities kay siya po ang eksperto didto sa ground, Your Honor.*

Mr. Ligutan. So, therefore, ma'am, *kayo po iyong tagasulat sa lahat ng gustong ipasulat ni Colonel Lachica, tama po ba?*

Ms. Acosta. *Nag-discuss po.*

Mr. Bacquel. Misleading, Your Honor.

Mr. Ligutan. Why?

The Presiding Officer. Misleading, Counsel. She did not—The witness did not say that. She said she was getting inputs from Colonel Lachica.

Mr. Ligutan. Your Honor, that's a follow-up question, Your Honor, please. That's a follow-up question. So, I'm confirming with her that it was Colonel Lachica who told her what to write, what to input. That's the question, Your Honor, please, on the basis of her previous answer that it was with the inputs of Colonel Lachica. So that's a question by itself, Your Honor, please. A follow-up question.

The Presiding Officer. Ma'am Gina, *kayo po ang nagta-type dito sa form na ito. 'Pag sinabing "Prepared by" you, kayo po iyong nag-type, nagsulat?*

Ms. Acosta. *Ako po ang nagsulat, Your Honor.*

The Presiding Officer. *Pero kinukuha ninyo po iyong sinusulat ninyo mula kay Colonel Lachica? Kumukuha po kayo ng input sa kaniya kung ano'ng ita-type o isusulat ninyo diyan?*

Ms. Acosta. After we discussed po, Your Honor.

The Presiding Officer. *Pagkatapos ninyo mag-usap ni Colonel Lachica.*

Ms. Acosta. *Opo, Your Honor.*

The Presiding Officer. *Ibig sabihin po ba noon, puwede ninyong sabihin kay Colonel Lachica, "mali iyan; hindi puwede iyan"? O sinusunod ninyo lang po lahat ng sinasabi niya?*

Ms. Acosta. *Mangutana....Nangutana ako sa iya ha, Your Honor, kung unsa na, Your Honor, ug nganong kana ang gastohon, Your Honor. "Asa na, paunsa na siya na related sa confidential?" Your Honor.*

The Presiding Officer. So *tinatanong ninyo lang po siya, ano iyan, para saan iyan, pasok ba iyan sa confidential fund o hindi? At 'pag sumagot siya, isusulat ninyo na po iyon?*

Ms. Acosta. *Kung ma-satisfy ko po sa iyahang gi-explain sa akoo, Your Honor.*

The Presiding Officer. *'Pag nakontento kayo sa paliwanag niya, ilalagay ninyo po.*

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. Okay. Attorney Ligutan, your witness.

Mr. Ligutan. Thank you so much. Now, going back, Madam Witness, going to the Physical and Financial Plan for the so-called "Good Governance Program," you will confirm you allocated P125 million, *tama po ba?*

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. In fact, ma'am, as can be seen—show the plan again—you did not list specific activities under the Good Governance Program? *Uulitin ko, wala po kayong inilista na mga specific, particular activities under the Good Governance Program. Wala po kayong nakalistang specific activities?*

Mr. Bacquel. Objection. Your Honor. Original document rule, Your Honor.



Mr. Ligutan. Can I explain? Can I rebut that, Your Honor, please?

The Presiding Officer. Witness may—What is your comment, Attorney Ligutan?

Mr. Ligutan. Your Honor, I would not—I do not want to put the Defense on the spot. Your Honor, please, that is, with all respect, a wrong invocation of the original document rule. The original document rule simply states *na hindi po—hindi po pwedeng magpresenta ng ebidensya na secondary kung hindi ipepresenta iyong original*.

Pero, Your Honor, the fact *na iyong original ay nasa harap na sa isang witness*, I don't see anywhere in the *Rules* that will prohibit a Counsel from propounding questions on the basis of that document. For me—

The Presiding Officer. Besides, Counsel, Attorney Bacquel, the Counsel is not trying to change the contents of the document. He is merely asking the witness to explain the contents of the document.

Ms. Acosta, you may answer, Ma'am. *Ang inilagay ninyo lamang po*, Good Governance—*ano po iyon?*

Mr. Ligutan. Program *po*.

The Presiding Officer. Programs. *At wala po kayong inilagay na detalye na mga programang iyan?*

Ms. Acosta. *Wala po akong inilagay na detalye*, Your Honor, *kasi sa JC po*, Your Honor, *wala naman po nakabutang didto na i-itemize*, Your Honor.

Mr. Ligutan. Now, let us go to Paragraph 6.1 ng Joint Circular 2015—Okay, show it please—*Hindi po ba sa 6.1 sinasabi diyan*, “Cash advances shall be used for”—*iyong term ginamit*, Ma'am, is “specific,” “specific detail”—“specific legal purpose.” Okay. *At saka 5.2.2 nakasulat diyan*, “Agencies shall report the specific detail of the corresponding expenditures.” In two instances *po nakasulat sa Joint Circular iyong term na “specific.”* And you will stand by your answer—

Mr. Bacquel. Argumentative, Your Honor.

Mr. Ligutan. Wait, wait, wait, I am just confirming. I am just confirming. Despite these two provisions, you are of the opinion, Madam, *na walang requirement na dapat specific iyong programa?*

Mr. Bacquel. Argumentative, Your Honor.

Mr. Ligutan. That is a follow up question.

The Presiding Officer. Objection is overruled. The witness will answer, please.

Ms. Acosta. Your Honor, *sa mga dokumento po nga i-attach dito sa Confidential Funds Liquidation, daghan po—daghan po ang document*, Your Honor, *na i-submit nimo nga na ay documents dito na kailangan i-itemize nimo*, Your Honor.

Mr. Ligutan. In the reports.

Ms. Acosta. Your Honor, *isa mga—isa sa mga dokumento nga i-attach nimo dito ini-liquidate nimo sa confidential funds*, Your Honor.

Mr. Ligutan. Okay.

The Presiding Officer. Let me state that for the *Record*.

Correct me if I'm wrong, Ma'am Gina.

Iyong binabanggit po ninyong pag-comply, walang nakalagay specifically sa Joint Circular na dapat specific iyon doon sa—what is that, Counsel?

Mr. Ligutan. Physical and Financial Plan *po*.

The Presiding Officer. Physical and Financial Plan. *Pero sa dokumentong Isina-submit, nandoon na iyong mga detalye*, Ma'am Gina?

Ms. Acosta. *In-ana*, Your Honor.



The Presiding Officer. Yes.

Mr. Ligutan. Iyan po.

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. Okay.

Mr. Ligutan. Okay. But there is only—this is another question now. There is only a blanket program, general program, Good Governance Program, in the plan and the plan did not mention any surveillance operations by specific number, location, or cost?

Do you want me to repeat the question or you can answer now?

Mr. Bacquel. Objection, Your Honor.

The Presiding Officer. What is the objection?

Mr. Bacquel. Asked and answered, and Original Document Rule, Your Honor.

Mr. Ligutan. Your Honor ...

The Presiding Officer. Not yet. Not yet answered, Counsel.

And again, same ruling as your point on the Original Document Rule.

Mr. Ligutan. *Opo, oo.*

Ma'am, *iyong tanong is, wala pong specific mention ng specific number, location, or cost ng mga sinasabi ninyong surveillance operations. Wala doon sa plano, hindi po ba?*

Ms. Acosta. Your Honor, *unsa na—puwede mangutana, Your Honor unsa na dokumento, Your Honor?*

Mr. Ligutan. *Katong plano po, iyong plano po, Physical and Financial Plan. Nakasulat diyan Good Governance Program.*

Anyways, Your Honor, please—

The Presiding Officer. At this juncture, I will agree with Counsel for the Respondent. Asked and answered, Counsel.

Mr. Ligutan. Yes.

The Presiding Officer. That is her answer.

Mr. Ligutan. Thank you so much.

Now, aside from *walang surveillance operations by number, location, or costs, wala ring specific targets nakasulat sa plano* for each of the program activities. *Tama po ba? Walang specific targets this time.*

Ms. Acosta. *Tan-awon sa nako, Your Honor, ha?*

Mr. Ligutan. *Opo, opo. By all means po.*

Ms. Acosta. For 2022, Your Honor?

Mr. Ligutan. 2022, yes, Ma'am.

Ms. Acosta. *Sa amo ang Physical Financial Plan, Your Honor, naay column didto nga Physical Target, Your Honor.*

Mr. Ligutan. *Opo. Yes. Ma'am, ang—okay, mayroon. Ma'am, iyong tanong is—nakasulat lang diyan is, Ma'am, number of identified areas of surveillance conducted and monitored. And then iyong pangalawa, letter B, iyong ano lang, iyong simbolo ng percentage, 'no, percentage of activities implemented without specifying—una po, this is the first question: Ano iyong actual number? Wala po, hindi po ba? Yes po?*

Ms. Acosta. *Wala pa, Your Honor, kay wala pa man nahitabo; plano pa man ni, Your Honor.*

Mr. Ligutan. Okay. So *wala pa, kasi plano pa lang*, and then you asked for P125 million. *Kahit wala pang activities, plano pa lamang, tama po ba?*

Mr. Bacquel. Misleading, Your Honor.

Ms. Acosta. *Mayroon na po—*

Mr. Ligutan. It's not misleading.

Mr. Bacquel. Your Honor, the question—

Mr. Ligutan. That's a follow-up question, Your Honor, please.

The Presiding Officer. Objection is sustained. Ask based on the document, Counsel.

Mr. Ligutan. Okay. Now, the next—

The Presiding Officer. I think you are referring to the physical target only, not the actual plan?

Mr. Ligutan. Yes, sir.

Now, *nakalagay ba diyan iyong actual number? Yes or no? May numero ba?*

Ms. Acosta. *Wala pa*, Your Honor.

Mr. Ligutan. Okay. *May naka-indicate ba na percentage, actual percentage under the category, "Percentage of Activities Implemented?" Wala po ba? Mayroon ba, wala?*

Ms. Acosta. *Wala pa*, Your Honor, *pero gihimo na*, Your Honor, *kay naa nay approval kung asa mi nakabalo kung pila ang kwarta*, Your Honor, *kay naa nay SARO*.

Mr. Ligutan. Now, okay, Ma'am—

The Presiding Officer. Kindly translate that for the *Record*.

Mr. Ligutan. Who can translate that, please? *Anong sabi niya?*

"There—it is indicated because there is already a SARO." If the Defense will stipulate on that interpretation.

The Presiding Officer. *Parang hindi yata ganoon kaikli iyon*, Counsel. [laughs]

Mr. Ligutan. You may have your own.

Mr. Bacquel. Your Honor.

The Presiding Officer. The translation we are getting is, it's not—the number and percentage is not there. *Iyong percentage po at iyong bilang, wala po doon dahil kaka-release pa lang ng SARO. Tama po ba*, Ma'am?

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. As best as we could, Counsel, please proceed.

Mr. Ligutan. Now, the 2022 Physical and Financial Plan allocated, Ma'am—*nag-allocate po ng P125 million kahit walang breakdown ng amount for each specific activity. Tama po ba?*

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Ligutan. Your Honor, that's another angle as to the amount relative to the activity—as to the budget that the Office of the Vice President is asking. Your Honor, please.

Mr. Bacquel. It's the same point, Your Honor.

The Presiding Officer. Same point. Counsel. Move on.

Mr. Ligutan. Okay. Move on.

The Presiding Officer. We get what you have established.

Mr. Ligutan. Thank you so much.

Now, therefore, Madam Witness, *iyong* Office of the Vice President can just include—*pupuwedeng i-include, isama ng* Office of the Vice President *sa* liquidation reports *ng kahit anong* activity so long as *ile-label siya na parte ng* broad Good Governance Program? Do you want me to repeat the question or you can answer now?

Ms. Acosta. *Tas kaimo* question, Your Honor.

Mr. Ligutan. I will.

Ms. Acosta. *Puwede i—anong tawag, ani? I-clarify*, Your Honor.

Mr. Ligutan. Yes. Your Honor, if the Court may allow, I will repeat the question.

Therefore, Madam, *kasi nga walang* breakdown, in—*sa paggawa ninyo ng* liquidation reports, *pupuwede ninyong isama doon sa* Liquidation Report *ng kahit anong aktibidad*, so long as *sasabihin ninyo, parte iyan ng* Good Governance Program. *Tama po ba?*

Mr. Bacquel. Objection, Your Honor.

Mr. Ligutan. What's the basis?

The Presiding Officer. What is the objection, Counsel?

Mr. Bacquel. Misleading and speculative, Your Honor.

Mr. Ligutan. How is it misleading?

The Presiding Officer. It is not, Counsel. In fact, I think that's one of the questions some of the Senator-Judges will ask.

Ma'am, *naintindihan ninyo po iyong tanong?* Ma'am Gina?

Mr. Ligutan. I can ask that in *Bisaya*.

The Presiding Officer. Ma'am Gina, *naintindihan ninyo po iyong tanong?*

Ms. Acosta. *Parang duha man ka* question *iyang buot ipasagot*, Attorney—

The Presiding Officer. Ma'am.

Ms. Acosta. *Ay*, Your Honor.

The Presiding Officer. *Ang inilagay po ninyo lang po doon*, Good Governance—Good Governance—what is that, Counsel? Programs?

Mr. Ligutan. Good Governance Program *po*.

The Presiding Officer. Good Governance Program. *Ang tanong po niya*, so *anuman iyong sabihin nila, basta sabihing* Good Governance Program, *pasok na po iyon doon?*

Mr. Ligutan. *Sa report po. Sa report.*

The Presiding Officer. *Sa report lang po.*

Ms. Acosta. *Sa report na* liquidation *po?*

The Presiding Officer. *Opo.*

Ms. Acosta. Your Honor, *kung paghimo nako og* Liquidation Report, *nagbase po ako sa* Fund Utilization Report *na gihatag sa ako-a sa amo-a ang* Security Officer, Your Honor, *na makita didto kung asa nagasto ang* kuwarta *unsa nga mga expenses ug pila*, Your Honor.

The Presiding Officer. So, *ang pinagbabasehan ninyo po, iyong* Liquidation Report *noong* Security Officer *na si* Colonel Lachica. *Tama po?*

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. Okay. Out of curiosity, *may tinanggihan ba kayong* Liquidation Report *na isinabmit* (submit) *ni* Colonel Lachica. *o lahat po ng ibinigay niya sa iyo ay tinanggap mo na parte ng* Good Governance Program?

Ms. Acosta. *Unsa*, Your Honor?

The Presiding Officer. *Mayroon po ba kayong tinanggihan na* liquidation *na isinabmit ni* Colonel Lachica *sa* P125 million *sa last quarter ng* 2022, *o lahat po ng isinumite niya na* liquidation, *tinanggap ninyo at sa pananaw ninyo ay kasama ng* Good Governance Program?

Ms. Acosta. *Ang lahat ng mga reports na gihatag niya sa ako-a, Your Honor, akong gidawat, Your Honor, kay siya man ang nakabalo unsaon pag-implementar sa mga confidential activities kay siya ang eksperto, Your Honor, didto sa ground, Your Honor, kaya ako gidawat—*

The Presiding Officer. *So, lahat po ng ibinigay niya sa inyo, tinanggap ninyo at kinonsidera ninyo na parte ng Good Governance Program dahil siya naman iyong nakakaalam at intindi, dahil siya naman iyong nasa ground. Tama po?*

Ms. Acosta. *In-ana, Your Honor. Yes, Your Honor.*

The Presiding Officer. *So, let me continue on that point, Counsel, with your permission and indulgence.*

So, iyong Tree Planting, Good Governance Program po iyon.

Ms. Acosta. *Unsa, Your Honor?*

The Presiding Officer. *Iyong Tree Planting. Binanggit ninyo po kanina, Tree Planting, Good Governance Program po iyon? Kasama po iyon doon sa pag-liquidate?*

Ms. Acosta. *Ang ibig sabihin, Your Honor, usa pa gihimo ang Tree Planting, Your Honor, na ay gihimo.*

The Presiding Officer. *Ang itinatanong ko po, Ma'am, iyong activity—*

Ms. Acosta. *Security Officer, Your Honor.*

The Presiding Officer. *Iyong activity na Tree Planting, parte po iyon noong Good Governance, sa pagkakaunawa ninyo, na program? Yes or no, Ma'am?*

Ms. Acosta. *Yes, Your Honor. Pero usa na gihimo, Your Honor, ang Security Officer, Your Honor, na ay gihimong surveillance, monitoring, Your Honor.*

The Presiding Officer. *Opo. Nabasa ko po iyan. Pati iyong libreng sakay, part ng Good Governance.*

Ms. Acosta. *Yes.*

The Presiding Officer. *May surveillance din po doon, nakita ko po sa Liquidation Report.*

Ms. Acosta. *Yes, Your Honor.*

The Presiding Officer. *Yes. Okay, Counsel, proceed.*

Mr. Ligutan. *Thank you so much.*

Iyon iyong Liquidation Report.

Ms. Acosta. *Opo.*

Mr. Ligutan. *Now, the point is—punta naman tayo sa Accomplishment Report. Kasi nga iba iyon, hindi ba?*

Now, same line of question, but this time, different document. You can just include—pupuwede ninyong isulat sa Accomplishment Report, kahit ano na lang activity, kahit anong activity, in the Accomplishment Report, this time, not liquidation reports, so long as ile-label ninyo lang under iyan ng Good Governance Program. Do you want me to repeat the question, Ma'am, or you can answer now?

Ms. Acosta. *Murag duha man kabuok ang question nato, Your Honor?*

Mr. Ligutan. *Accomplishment Report, this time. Iyong kanina po na-gets ninyo na, Liquidation Report. Ngayon, ngayon iyong tanong ay sa Accomplishment Report naman, pareho lang. Kahit anong activity isasama sa Accomplishment Report so long as isusulat under Good Governance Program. Tama po ba?*

The Presiding Officer. *Counsel, can you confront the witness with the Accomplishment Report?*

Mr. Ligutan. Okay.

The Presiding Officer. Assisting Counsel, can you show her the Accomplishment Report?

Mr. Ligutan. *Opo.*

The Presiding Officer. *Para maunawaan ng testigo na ibang dokumento na ang pinag-uusapan natin. Kanina iyong Physical and Financial Plan, ngayon naman iyong Accomplishment Report.*

Paki tingnan po at pag-aralan iyong dokumento, Ma'am Gina, para alam ninyo po na iyan ang tinutukoy ni Attorney Ligutan sa mga katanungan po niya sa inyo.

Ms. Acosta. Excuse me, Your Honor.

Mr. Ligutan. Yes, Ma'am.

Ms. Acosta. *Kaduha mi naghimo og Accomplishment Report, Your Honor, for 2022.*

Mr. Ligutan. Yes, Ma'am.

The Presiding Officer. *Kung dalawang beses kayo—dalawang beses po kayo gumawa ng Accomplishment Report, Ma'am Gina?*

Ms. Acosta. *Opo, Your Honor.*

The Presiding Officer. *Alin po iyan, iyong nauna o iyong sumunod?*

Ms. Acosta. *Ang kaning gihatag sa akoo, Your Honor, mao ni ang unang gihimo, Your Honor.*

The Presiding Officer. *Iyong unang Accomplishment Report.*

Mayroon ba kayong kopya noong pangalawang Accomplishment Report, Attorney Ligutan?

Mr. Ligutan. Anyways, we can live with one report for this point, Your Honor, please.

The Presiding Officer. Okay, for this point.

Mr. Ligutan. I think I will ask the direct question *na lang.*

Ms. Acosta. *Sige, Your Honor.*

Mr. Ligutan. Madam Witness, *kinukumpirma mo na may mga aktibidades, activities sa report ninyo, sa Accomplishment Report na nabasa ninyo, na hindi makikita, mababasa sa Physical and Financial Plan, tama po ba?*

Ms. Acosta. Your Honor, *paghimo namo—*

Mr. Ligutan. Ma'am, this time *po*, this time *po*, I hope you don't mind *po*. The question is simple, so *pupuwede kang tanungin ng abogado ng kabila, pero pakisagot lang po muna.* Yes or no?

Mr. Bacquel. The witness is answering, Your Honor. Let the witness answer.

The Presiding Officer. Allow the witness to answer, Counsel.

Mr. Ligutan. Okay. Yes.

The Presiding Officer. ... were—

Mr. Ligutan. *May mga aktibidades, activities, programa, kalihukan in Bisaya, reflected in the report, Accomplishment Report na hindi naman mababasa, makikita, nailista sa Physical and Financial Plan, tama po ba?*

Ms. Acosta. *Libog—nalito ako, Your Honor.*

Mr. Ligutan. *Nalito ka? Anyways, Your Honor—*

The Presiding Officer. Ma'am, *sa Accomplishment Report—Yes, Senator-Judge Zubiri, would you like to offer your services?*

MANIFESTATION OF SENATOR-JUDGE ZUBIRI

Senator-Judge Zubiri. Yes, actually—not the services to interpret, but is it possible that Attorney Ligutan could ask the question in Bisaya *para maintindihan, kasi pareho kaming mga Bisaya, para maintindihan ni Ma'am Acosta?* And then, anyway, it can be objected to by the Defense, because I know there are three or four of you *Bisaya, taga-Cebu, tolo. Tolo mo diha nakasabot.* So, you can always object if the translation of Attorney Ligutan is wrong, is different. It's simple Bisaya *naman. Makasabot man ta, pero ang mga tinagalog dinhi di kasabot.* But you know, it is very simple.

Mr. Ligutan. Yes, oo.

Senator-Judge Zubiri. So, maybe that way we don't have to keep stopping. Attorney Ligutan can ask the question first in Tagalog, and then translate to simple Bisaya. *Makatubag na si Ma'am.* She can answer. And then Attorney Ligutan can offer the answer also in Tagalog. If it is not like, of course, approved by the Defense, the Defense can give a clarification of what the answer of the lady witness.

Thank you very much.

The Presiding Officer. The point of the Senator-Judge is well taken. Let's try to do that, Counsels, with your permission.

Mr. Ligutan. Okay. Now—

Mr. Bacquel. Your Honor.

The Presiding Officer. Yes, Attorney Bacquel?

Mr. Bacquel. Yes, Your Honor. May we respectfully suggest for a Court-appointed interpreter considering that *hindi po kasi ako Bisaya*, so actually *nahihirapan po ako* to understand the witness, understand Attorney Ligutan, and understand my colleagues who are likewise—

DIRECT EXAMINATION OF THE WITNESS

(Continuation)

The Presiding Officer. ... If you may, if you will, please, we already have an interpreter, actually two of them here...

Mr. Bacquel. Yes, Sir.

The Presiding Officer. ...that will course it through the Chair if there is a need to do so. Some of the words are understandable anyway.

Kindly proceed slowly, Attorney Ligutan.

Mr. Ligutan. I will.

The Presiding Officer. But on this issue and in this question, Ms. Acosta, *ang tanong po sa inyo: may mga nilagay po kayong accomplishment report sa accomplishment report na wala doon sa physical and financial plan. Na sinabi n'yo lamang o inisip n'yo lang, kasama iyan sa good governance program?*

Ms. Acosta. *Ang nasulat sa accomplishment report, Your Honor. is iyong mga expenses na allowable po sa confidential funds.*

The Presiding Officer. *Opo, pero wala nga po iyan, hindi iyan nilagay doon sa physical and financial plan. Nakalagay lang po sa accomplishment report?*

Ms. Acosta. *Sa accomplishment report, Your Honor, kung—actual.*

The Presiding Officer. *Kaya nga, doon nga lang po nakasulat. Sa physical and financial plan, wala po doon?*

Ms. Acosta. *Generic po ang sa physical financial plan, Your Honor.*

Mr. Ligutan. *Generic. Therefore—*

The Presiding Officer. Okay. Attorney Ligutan, continue.

Mr. Ligutan. *Opo.* That's a cue to the next question.

And because the program indicated in the plan is broad and general, "generic" *sabi n'yo*, so much discretion is given to the Office of the Vice President on how to utilize confidential funds.

Translate into *Tagalog*, unfortunately, I will be needing—*ano pong ibig sabihin*—what's *Tagalog* for "discretion" *po*? *Kasi nga*, broad, general *iyong* program *nakasulat sa* PFP—okay—*maski ano na lang, kahit anong gustong gawin, magagawa*—wait, I'm not yet done—*ng* Office of the Vice President *sa paggamit ng* confidential funds?

You want to translate in *Bisaya po*? *Kay tungod* general, generic *ang programang nakasulat sa plano, bisag unsa*, so much discretion—Ma'am, I think you understand "discretion," *hindi po ba*?

Ms. Acosta. Authority?

Mr. Ligutan. *Dako ang pagbuot sa* Office of the Vice President *kung unsaon nila paggamit sa* confidential funds. *Tama po ba*?

Mr. Bacquel. Objection, Your Honor.

Ms. Acosta. *Dili*, Your Honor.

The Presiding Officer. What is the objection, Counsel?

Mr. Bacquel. Speculative and argumentative, Your Honor.

The Presiding Officer. It's not argumentative, Counsel, neither that it's speculative. Objection overruled.

Ma'am Gina, *dahil po kayo ang nagsabi*, "generic" *iyong* Good Governance Program, *malaking laya ang nabigay sa inyo para magsulat ng kung anumang mga programa na papasok doon sa generic na* Good Governance Program?

Ms. Acosta. *Dili*, Your Honor.

The Presiding Officer. *Hindi*?

Ms. Acosta. *Kay nag-base ako sa* Joint Circular 2015.

The Presiding Officer. So, *ang sagot ay hindi, hindi ganoon kalaki ang kalayaang mayroon sila dahil binase (base) niya iyong kaniyang accomplishment report sa* JC 2015-1. *Tama po, Ma'am*?

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. Okay. Attorney Ligutan.

Mr. Ligutan. Now, showing you again, Madam Witness, the 2022 physical and financial plan. After you prepared the plan, *nakasulat diyan*—show the document, please. It was noted—Attorney Jay—noted by a certain Rosalynne Sanchez. *Tama po ba*?

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. Yes, Your Honor. The document, please.

And after—thereafter, you presented the plan *kay* Inday Sara, Vice President Sara for her approval. *Tama po ba*?

Ms. Acosta. Yes, Your Honor, *gipakita nako sa iya*.

Mr. Ligutan. Okay. In this case, did she provide any feedback on the stated generic, coming from your own mouth, good governance program?

Ms. Acosta. *Unsa*, Your Honor?

Mr. Ligutan. *Nihatag ba*, and I am sure you know feedback, *nihatag ba og* feedback *si* Vice President Sara Duterte *sa sinabi mong* generic good governance program *katong imong gipakita ang plano para sa iyahang* approval?

Ms. Acosta. *Gibasa lang niya, Your Honor. Paghuman og basa, nipirma siya.*

Mr. Ligutan. *Iyon. Saan po pumirma si Sara Zimmerman Duterte sa parte ng plano? Saan diyan?*

Ms. Acosta. *Sa "Approved."*

Mr. Ligutan. Approved by—showing on screen, "Approved by Sara Z. Duterte, Vice President, Agency Head, Department Secretary LCE."

The Presiding Officer. With the indulgence of Attorney Ligutan, what is the pleasure of Senator-Judge Erwin Tulfo?

INQUIRY OF SENATOR TULFO (E)

Senator-Judge Tulfo (E). Mr. President, I have here the transcript of the hearing in Congress. *Hindi ko po maintindihan bakit parang dito ay hrap na hrap siya mag-Tagalog when in fact sa Congress po noong November ay Tagalog naman po ang sagot niya.*

Ang tanong po sa kaniya ni Congressman Luistro: "Payment of incentive, 11 po. Would you know whether these amounts would total 120 exactly?"

"Yes, Ma'am gi-total ko po iyan, Ma'am, P120 million po." It is all-puro Tagalog, Mr. President. What is this? I mean, mabuti po sana pati iyong discretionary and she is a government official, she does not know what discretionary means is? I mean what it means? Dito po ay puro sumasagot naman po siya, English, Tagalog.

"Yes po."

"Are you aware?"

"Opo."

"May authority special disbursing officer?"

"Kasi po wala akong alam kung paano po i-implement ang mga confidential."

Mr. President, *tama na po itong panloloko sa atin.* Please Mr. President, compel this witness to talk in Tagalog.

Kahit po iyong mga Bisaya po ay nakakaintindi ng Tagalog, nakakapagsalita ng Tagalog. Ano tayo sa ibang bansa? Ano tayo mga Hapon, mga Chinese? I know Ms. Witness, you can understand; you can understand Tagalog, you can speak Tagalog dahil nandito po ito o. Ilang pahina po ito o. Tagalog po ang sagot po ninyo. English po sumasagot kayo. Tinatanong kayo ng Ingles, sumasagot po kayo. Bakit ngayon parang hrap na hrap? Kailangang i-translate sa Tagalog, sa Bisaya; sagot Tagalog, Bisaya, Tagalog, Bisaya. Aabutin ho tayo ng isang taon dito, Mr. President. Ito po eh o. Sumagot naman po siya. Alangan ba namang lokohin tayo ng nagta-transcribe po nito?

Sagot mo iyan, "Kasi po nagbabase lang po ako sa ibinigay ni Sir Lachica ng mga ibinalik niya sa akin."

"Ms. Acosta kindly answer the question."

"Piatos po ang sinabi ko Ma'am na apelyido."

That is all Mr. President.

DIRECT EXAMINATION OF THE WITNESS

(Continuation)

The Presiding Officer. Thank you, Senator-Judge Erwin. Point well taken.

Attorney Ligutan to abbreviate the proceedings, kindly choose one language: English or Filipino in asking the question. You don't have to translate each time unless the witness requests you to do so.

Mr. Ligutan. Yes, yes, Your Honor.

The Presiding Officer. Preferably use Filipino, Attorney Ligutan, because I am sure you are well-versed with it as well *para mas maunawaan po ni Ms. Gina.*

Mr. Ligutan. Yes po, Mr. Honorable Presiding Officer.

The Presiding Officer. You may proceed, Counsel.

Mr. Ligutan. Ma'am, *may tubig.* There is water if you want to drink water *po ha.*

Ms. Acosta. Yes.

Mr. Ligutan. Since you said *inaprubahan po ng Vice President iyong plano, kasama sa inaprubahan ng Vice President iyong generic good governance program.*

Ms. Acosta. *Gi-approve niya,* Your Honor.

Mr. Ligutan. Okay. In fact, Ma'am, *iyon din po iyong naging tugon n'yo sa same line of questioning noong November 25, 2024,* as shown by that portion of that transcript. You confirm that it was, *may approval po ng head of agency at saka iyong head of agency is the Respondent in this case, Sara Zimmerman Duterte, Vice President. Tama po ba?*

Ms. Acosta. *Tama po,* Your Honor.

Mr. Ligutan. Let's proceed *po sa susunod na punto.* Let's go to the physical and financial plan *naman* this time *para naman sa 2023.* From Good Governance Program, Ma'am, this time—Attorney Jay—it can be seen *sa plano* this time *hindi na* Good Governance Program *kundi nakasulat diyan* Socio-Economic Program Delivery.

The Presiding Officer. With the indulgence of Counsel, can the tech please zoom in? Yes, kindly zoom in on it.

Mr. Ligutan. May I proceed, Your Honor?

The Presiding Officer. Ms. Gina, will please answer. Kindly confirm kung *nakasulat na po sa 2023 ay iyong Socio-Economic Program Delivery.*

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. *Hindi na po* Good Governance Program.

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. Proceed, Your Honor?

The Presiding Officer. You may proceed.

Mr. Ligutan. But, but, *sa 2023* physical and financial plan, okay, *iyong* expected outcome *naman nananatili,* 2022 na expected outcome, *nakasulat,* "Safe implementation of OVP initiatives and confidence-building." For 2022, same expected outcome, "Safe implementation of OVP initiatives and confidence-building." *Tama po ba?*

Ms. Acosta. *Tama po,* Your Honor.

Mr. Ligutan. Ma'am, *pupuwedeng mas malapit pa sa mikropono para po marinig.* Again, *may tubig diyan,* Ma'am, ha, if you want to drink water.

Now, therefore, *masasabi natin base sa dokumento,* Ma'am, *iyong 2023* physical and financial plan *kopya lang, kopya lang ng,* number one, physical target *galing sa 2022. Tama po ba?*

Mr. Bacquel. Objection. Your Honor. The document would speak for itself. Because the Prosecution is asking the witness what is already based on the document as the question is framed, Your Honor.

The Presiding Officer. Witness, witness may answer. I am just not so sure if she understands the word, "copy."

But—So, Ma'am Gina, *pareho lang po ang nilalaman ng* physical and financial plan *ng 2022 at 2023 maliban doon sa nag-iisang unang column. Tama po ba?*

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. Yes, Your Honor. Now, proceed. Same with budget for each quarter, *para sa* fourth quarter *ng* 2022, P125 million. *Para naman sa* budget *na hinihingi ng* Office of the Vice President *para sa unang* quarter, *pangalawang* quarter, third quarter, fourth quarter *ng* 2023, Ma'am, *kopyang-kopya* *iyong* amount, P125 million. *Tama po ba?*

Ms. Acosta. *Tama*, Your Honor, *kay mao man na ang nakabutang sa* GAA, Your Honor.

Mr. Ligutan. *Iyon*. Proceed, Your Honor.

The Presiding Officer. *Tama daw dahil iyon daw ang nakalagay sa* GAA.

Mr. Ligutan. Oo. Both the 2022 physical and financial plan and the 2023 version provided for a broad program under *po sa* Programs, Activities, and Projects. *Sa* 2022, Good Governance Program. *Sa* 2023 *naman*, Socio-Economic Program. *Pero* as to budget, *pareho*. Yes or no?

Ms. Acosta. *Pareho*, Your Honor.

Mr. Ligutan. As to expected outcome, *pareho?*

Ms. Acosta. *Pareho*, Your Honor.

Mr. Ligutan. All right. Now, let's go to this physical target *naman*, in the 2023 physical plan. Same observation *ba*, Ma'am, *na nakasulat diyan* letter (a) "No. identified areas with surveillance conducted and monitored," without—*hindi po nakasulat diyan iyang actual na numero*. *Tama po ba?*

Ms. Acosta. *Tama po*, Your Honor.

Mr. Ligutan. Same with the letter (b) entry, percentage—*nakasulat diyan*, percentage (%), the symbol, symbolizing percentage of activities implemented without untoward security-related incidents, without stating the actual percentage, *tama po ba? Walang* number.

Ms. Acosta. *Walang* num—*Tama po*, Your Honor.

Mr. Ligutan. All right. In fact, you admitted, Madam, in the November 25, 2024 Committee on Good Government hearing that you have to consult Colonel Lachica on what to put in the physical and financial plan. Do you remember this?

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. *Iyan*. The programs, *iyong programa po*, *iyong mga ine-expect nating resulta sa mga programa*, *iyong mga targets ng mga plano*, *lahat ng ito ay gawa, ay galing kay* Colonel Lachica, *hindi po ba?*

Ms. Acosta. *Unsa to*, Your Honor? *Ay*, sorry, sorry.

Mr. Ligutan. I will repeat. I will repeat.

The Presiding Officer. Kindly repeat, Counsel.

Mr. Ligutan. *Ang programa sa plano*, *ang expected outcome*, *ang target sa* physical plan *galing kay* Colonel Lachica, *tama po ba?*

Mr. Bacquel. Objection. Your Honor.

Mr. Ligutan. Oh, what's the objection?

The Presiding Officer. What is the objection, Counsel?

Mr. Bacquel. Asked and answered, Your Honor. The witness has already testified previously that security officer is providing inputs and guidance, Your Honor.

Mr. Ligutan. This is 2023, Your Honor.

The Presiding Officer. I think the question pertains to 2023 now.

Mr. Ligutan. Yes.

The Presiding Officer. That was—she answered with respect to 2022.

Ma'am Gina, *iyong nangyari po ba noong 2022, ganoon din po sa 2023, galing kay Colonel Lachica?*

Ms. Acosta. *Sa paggawa ng physical financial plan, Your Honor, kasama gihapon na ko siya, kasama ko siya, Your Honor. Sa kaniya pa rin ako nanghingi ng inputs and guidelines po, Your Honor.*

Mr. Ligutan. Yes.

The Presiding Officer. *So galing nga po sa kaniya? Galing kay Colonel Lachica iyong inyong inputs na nilagay dito?*

Ms. Acosta. *Kaming dalawa po, Your Honor, ang nag-discuss, Your Honor.*

The Presiding Officer. Counsel, your witness.

Mr. Ligutan. Let us go to that November 25, 2024 hearing, Ma'am, *tinanong ka ni Representative Jinky Luistro. As a matter of fact, the financial plan does not bear at all the signature or the name of Colonel Lachica. Ma'am, iyong sagot n'yo diyan, "Yes po, pero sa kaniya po ako humihingi ng inputs or information with regards to the implementation of all these projects included in the Confidential Funds."* This is what you said under oath on November 25, 2024, under oath, *tama po ba?*

Ms. Acosta. *Opo.*

Mr. Ligutan. Your Honor, please—I mean, did you answer "*Opo?*"

Ms. Acosta. *Opo.*

Mr. Ligutan. *Opo. Ma'am—Your Honor, it is 12. Can I ask one question and I move for lunch break ...*

The Presiding Officer. Yes, Counsel, you may.

Mr. Ligutan. ... before we proceed to the next question?

Ito iyong tanong now. Ma'am.

Ms. Acosta. Yes, Sir. Yes, Attorney.

Mr. Ligutan. *Opo. Sa lahat ng mga dokumentong isinumite n'yo sa COA, Commission on Audit, the plan, accomplishment report, liquidation report, nakasaad ba diyan sa kahit anong dokumento iyong sinasabi n'yo na lahat ng inputs iyong sinulat n'yo sa plano, lahat ng inputs sinulat n'yo sa reporting to COA, nakasaad ba diyan iyong pangalan ni Colonel Lachica? Yes or no?*

Mr. Bacquel. Objection, Your Honor. The document would speak for itself, Your Honor.

Mr. Ligutan. Your Honor, that is a question the public is very much willing to hear.

The Presiding Officer. Witness may answer. Counsel, let the witness answer. I think she knows the answer anyway.

Mr. Ligutan. Yes or no?

Ms. Acosta. *Tama ba pag-understand ko sa question mo, Your Honor, na sa lahat ng mga dokumento na gi-submit ko sa—*

Mr. Ligutan. *Plano, physical plan, Ma'am.*

Ms. Acosta. Physical plan ...

Mr. Ligutan. Okay. *Sa accomplishment report mismo ...*

Ms. Acosta. ... accomplishment report ...

Mr. Ligutan. ... *sa liquidation report ...*

Ms. Acosta. *Sa liquidation report.*

Mr. Ligutan. *Sa certification na successful iyong paggamit, tama iyong paggamit ng plano. May isang dokumento ba doon—Ma'am, limited po tayo doon, ha?—na ipinakita ninyo sa*

publiko na si Colonel Lachica iyong nagbibigay sa iyo ng input sa mga plano at saka siya iyong nag-i-implement ng mga programs, activities. Mayroon ba doon? Yes or no.

Ms. Acosta. *Wala.*

Mr. Ligutan. Move for lunch break, Your Honor, please.

The Presiding Officer. Ma'am Gina, *kain muna tayo para makahinga at relax kayo nang kaunti rin.*

Ms. Acosta. *Sige po. Mas better po, Attorney—ay, Your Honor.*

The Presiding Officer. *Okay lang po, Ma'am. Huwag kayong mag-alala doon. Pahinga muna kayo. Kain tayo.*

SUSPENSION OF TRIAL

With the permission of the Body, trial was suspended.

It was 12:04 p.m.

RESUMPTION OF TRIAL

At 12:51 p.m., the trial was resumed.

ORDER OF THE PRESIDING OFFICER

The Presiding Officer announced that proceedings would end at 2:00 p.m. due to inclement weather, with the Senate plenary session scheduled to convene at 2:30 p.m. He reminded Counsels to manage their time accordingly and directed Ms. Acosta to continue her testimony under her earlier oath.

DIRECT EXAMINATION OF THE WITNESS

(Continuation)

The Presiding Officer. Okay, Attorney Ligutan, your witness.

Mr. Ligutan. Hello, Madam Witness. Now, *kanina, nabanggit mo na si Colonel Lachica iyong nagbibigay sa iyo ng inputs ano iyong isusulat sa plano at saka sa liquidation saka accomplishment reports. Kanina rin, the record will bear me out, in fact, nasabi mo rin na siya rin iyong may alam sa pag-i-implement ng mga sinasabi ninyong confidential activities. Okay, na pinagagamitan ng confidential funds. Now, iyong tanong now is, Ma'am, empleyado ba, empleyado ba ng Office of the Vice President si Colonel Lachica?*

Ms. Acosta. *Siya po ang itinalaga na Security Officer ng Office of the Vice President, Your Honor.*

Mr. Ligutan. *Iyong tanong, I think, is simple.*

The Presiding Officer. Ma'am Gina, *kapag sinabi ninyong security—sagot ninyo po kanina, siya ang commanding officer ng VPSPG. Sinabi ninyo rin po na siya ang Security Officer ng OVP. Mayroon po ba siyang appointment at sweldong tinatanggap bilang Security Officer ng OVP? Wala po?*

Ms. Acosta. *Hindi ko po alam, Your Honor, kung may sahod po siya, pero ang alam ko, mayroon po siyang office order na siya po ang Security Officer ng Office of the Vice President.*

The Presiding Officer. Okay, your witness, Counsel.

Mr. Ligutan. I think the question is simple, Ma'am. *Sa alam ninyo, sa pagkakaalam ninyo, I am not asking ano iyong designation niya. I think you are more than competent to answer this question. Empleyado ba ng Office of the Vice President si Colonel Lachica?*



Mr. Bacquel. Asked and answered, Your Honor.

Mr. Ligutan. Your Honor, no answer yet.

The Presiding Officer. Witness will answer, please. *Kung alam ninyo po, Ma'am.*

Ms. Acosta. *Ang alam ko po, siya po ang Security Officer, Your Honor. Iyon lang po ang alam ko.*

The Presiding Officer. That was his answer, Counsel; her answer rather.

Mr. Ligutan. All right now, Madam Witness, I am showing you now *iyong isang letter galing sa Office of the Vice President, may petsang November 30, 2023, pirmado ng isang Lemuel Ortonio.* We are confronting you with the document, through Attorney Jay, and the letter is also being shown on our screen.

The Presiding Officer. Assisting Counsels may approach. Kindly zoom in to the relevant portion.

Mr. Ligutan. Okay. According to this letter, Ma'am, November 30, 2023, *nakasulat diyan na as early as July 2022, iyong OVP nakapag-identify na ng mga programa at saka surveillance activities na sinasabi diyan,* intertwined with matters of national security. *Iyong letter is dated November 30, 2023, pero nakasulat diyan as early as July 2022, nakapag-identify ng mga programa.* Aware *ka ba sa letter na ito?* Yes or no? Aware *ka, hindi?*

Ms. Acosta. Aware *po ako,* Your Honor.

Mr. Ligutan. Now, in fact, aware *ka rin na itong letter na ito, ito iyong tugon, reply ng OVP through Ortonio sa Audit Observation Memorandum.* Aware *ka rin diyan, hindi ba?*

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. Now, based *sa letter na ito,* Ma'am, programs *at tsaka* surveillance activities *na sinasabi ninyo* to intertwined with national security, *ay sinasabi ninyo na-identify na* as early as July 2022. And you will agree with me, Ma'am, *kung July pa lang 2022 andiyan na iyan, ay kailangan isinama ninyo—isinama ninyo dapat iyan sa physical and financial plan para sa fourth quarter ng 2022,* which you submitted on December 13, 2022, months after *na-identify ng office ninyo iyong mga specific activities?* Did you get the question?

Ms. Acosta. Your Honor, *saan po dito iyong sinabi mo na activities,* Your Honor?

Mr. Ligutan. Ma'am, *nasa screen.* "These programs"— "program goals are inextricably intertwined with matters of national security, July 2022."

The Presiding Officer. Assisting Counsel, kindly point it out on Page 2.

Mr. Ligutan. Page 2.

The Presiding Officer. Kindly point it out to the witness what Counsel is referring to.

Ms. Acosta. Sir, *ano po iyong question?*

Mr. Ligutan. Okay. *Iyong tanong* now is, *hindi ba dapat isinama ninyo ito, iyong mga sinasabi ninyong mga specific activities sa physical and financial plan for the fourth quarter 2022,* which is dated December 13, 2022? *Isinama ninyo ba iyan?*

Mr. Bacquel. Objection. Your Honor. Argumentative, Your Honor.

The Presiding Officer. Rephrase, Counsel. I get the point of the objection of the Counsel. Sustained. Kindly rephrase.

Mr. Ligutan. Okay. Now, *hindi po ba* those should have been reflected—those should have been reflected in the physical and financial plan for the fourth quarter of 2022?

Mr. Bacquel. Same objection, Your Honor.

The Presiding Officer. Ma'am Gina.

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. *Bakit hindi ninyo po isinama iyang mga bagay na iyan doon sa physical and financial plan ng 2022? Kung Hulyo pa lang may ganyan na pala, bakit hindi ninyo po iyan isinama sa 2022 fiscal and financial plan—Physical and Financial Plan?*

Ms. Acosta. Sir...

The Presiding Officer. Ma'am Gina.

Ms. Acosta. ...ito po ba iyang target property alleviation, threats to peace and order, and the promotion of economic development po?

The Presiding Officer. Counsel.

Mr. Ligutan. I think the public knows whether the witness is answering the question or not. I will move on, Your Honor, please.

The Presiding Officer. Move forward, Counsel.

Mr. Ligutan. Thank you. Now, Madam, let's go to this cash encashment for the 20—check encashment para sa 2022 confidential funds. Now, pinapakita sa iyo ngayon iyang isang tseke, may petsang December 20, 2022. Okay. As well as iyang nasa likod ng tsekeng iyan. Okay. Iyang tsekeng iyan has been previously marked as Exhibit P-I-28-a and P-I-28-a-1. Iyang tanong: You personally encashed, ikaw mismo iyang nag-encash ng P125 million cash advance ng confidential funds noong December 20, 2022, correct?

Ms. Acosta. Opo, Sir.

Mr. Ligutan. And then, Ma'am, na-encash mo iyan only pagkatapos iyang tseke maibigay sa iyo. Tama po ba?

Ms. Acosta. Yes, Sir.

Mr. Ligutan. Tanong, kailan ba na-encash iyang tsekeng ito? Hindi ba, December 20, 2022?

Ms. Acosta. Yes, Sir.

Mr. Ligutan. And hindi po ba, bago ma-release iyang tseke sa iyo, iyang tsekeng iyan kailangan munang iprepara at saka dapat pirmado ng chief accountant. Tama po ba?

Ms. Acosta. Ang nag-pirma po—

Mr. Ligutan. No, Ma'am. The question is, tama po ba na bago ninyo ma-i-release—bago ninyo natanggap iyang tseke, iyang tsekeng iyan kailangang i-prepare muna at saka pirmahan?

Ms. Acosta. Gi-prepare po ng accountant po.

Mr. Ligutan. Yes. Okay, now—and of course, madam, iyang tsekeng iyan, na-prepare lang, napirmahan lang, na-release sa iyo lang, only after the required disbursement voucher had been signed and approved. Tama po ba?

Ms. Acosta. Opo.

Mr. Ligutan. If you can remember, Ma'am, iyang disbursement voucher, napirmahan at saka na-approve same day, December 20, 2022. Tama po ba?

Ms. Acosta. Ang—iyang date ng voucher?

Mr. Ligutan. Opo.

Ms. Acosta. At tsaka date ng tseke?

Mr. Ligutan. On the same day.

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. Yes, Sir. In fact, iyon iyang disbursement voucher dated December 20, 2022. Exhibit P-I-10-a.

Now, iyang voucher na iyan pirmado ng VP Sara Duterte, Julieta Villadelrey, at tsaka Lemuel Ortonio. Tama po ba?

Ms. Acosta. Your Honor, *hindi ko mabasa iyong* after my name ...

Mr. Bacquel. Can the witness be—

The Presiding Officer. Assisting Counsel, kindly furnish—

Ms. Acosta. ... *kung* Ortonio *po* *iyon*.

The Presiding Officer. Kindly furnish Gina a copy of the disbursement voucher.

Mr. Ligutan. It's in her possession at the moment, Your Honor, please.

Ms. Acosta. Voucher.

The Presiding Officer. Disbursement voucher for the last quarter of 2022, Ma'am Gina.

Ms. Acosta. *Pirmado. Hindi kas—hindi kasi ano, hindi kasi klaro po* *iyong* *pirma* *dito*.

Mr. Ligutan. Anyways—

Ms. Acosta. *Ang maklaro ko lang dito*, Your Honor, *is may pirma po* ...

Mr. Ligutan. Yes.

Ms. Acosta. ... *may signature* and then *may pirma po dito* *ng accountant namin. Pero* *iyong sa gitna, hindi po kasi klaro dito*, Your Honor.

Mr. Ligutan. Okay.

The Presiding Officer. Move on, Counsel.

Mr. Ligutan. Now, madam, *iyong* disbursement voucher, *iyong pagpi-prepare, pagpipirma, at tsaka pagre-release ng tseke, iyong date ng tseke, at tsaka iyong pag-i-encash ng tseke*, they all happened on the same day, December 20, 2022. *Tama po ba?*

Ms. Acosta. *Tama po*, Your Honor.

Mr. Ligutan. How much was the amount encashed on that day? P125 million, *hindi po ba?*

Ms. Acosta. Yes *po*.

Mr. Ligutan. You encashed this check *sa* LANDBANK Shaw Boulevard Branch, *tama po ba?*

Ms. Acosta. Yes *po*.

Mr. Ligutan. Now, listen to this question now. For unusual amounts like P125 million, *iyong bangko ay kailangang i-notify—ma-notify iyong bangko isang araw*, minimum, or at least two days, before *ma-encash iyong tseke para ma-prepare, maihanda iyong cash. Ito iyong na-mention ni* Ms. Violeta Constantino, then Department Manager *ng* LANDBANK Shaw Boulevard, when she testified. Do you confirm this practice?

Mr. Bacquel. Objection, Your Honor.

Mr. Ligutan. What's the objection?

Mr. Bacquel. The question is misleading, Your Honor. There's no testimony as to unusual amount, Your Honor.

The Presiding Officer. There was, Counsel.

Mr. Ligutan. There was.

The Presiding Officer. There was, Counsel.

Mr. Bacquel. Not by the witness, Your Honor.

The Presiding Officer. Not by this witness, but by the LANDBANK executive.

Mr. Ligutan. Okay. *Hindi po ba kailangang ma-notify muna iyong bangko* a day or two?

Mr. Bacquel. May we ask the prosecution to repeat the question, Your Honor.

Mr. Ligutan. Your Honor, please, I think there was a ruling—

The Presiding Officer. If she knows.

Mr. Ligutan. Yes.

The Presiding Officer. Ma'am Gina, *kayo po ba ay nag-i-inform sa bangko o may kailangan po bang mag-inform sa bangko na magwi-withdraw kayo ng ganito kalaking pera?*

Ms. Acosta. *Ganito po, Your Honor, nang handa na po ang tseke, tumawag po ang aming Cash Division na, "Ma'am Gina, handa na po ang tseke at puwede mo nang ipa-encash sa bangko."*

Mr. Ligutan. Not responsive. Okay. Now—

The Presiding Officer. Continue, Counsel.

Mr. Ligutan. Now, by what time did you go to LANDBANK on December 20, 2022?

Ms. Acosta. *Mga around 2:00 to 2:30, nakaabot dito, Your Honor.*

Mr. Ligutan. Two to 2:30, *hindi 3:00 p.m.?*

Ms. Acosta. *Mga ganiyan, Your Honor.*

Mr. Bacquel. Your Honor, witness already answered.

Mr. Ligutan. Wait, I'm just clarifying because that's what she said in the hearing. Anyway, so it is 2:00, 2:30, and then when confronted with another option, 3:00 p.m., *iyong sagot mo, "Mga ganiyan."* So, it includes 3:00 p.m. *Tama po ba?*

Ms. Acosta. *Basta naabot ko dito, Your Honor, mga 2:00 to 2:30, Your Honor.*

Mr. Ligutan. All right. Now, by the time you arrived at the bank on December 20, 2022, *iyong P125 million in cash, nakahanda na, hindi po ba, for your withdrawal?*

Ms. Acosta. *Sa pagkaalam ko, nakahanda na ...*

Mr. Ligutan. Yes.

Ms. Acosta. ... *kasi tumawag po ang aming cash division, Your Honor, na kunin ko na ang tseke at puwede na ding ipa-encash sa bangko.*

Mr. Ligutan. Yes. *Ibig sabihin, at least, na-notify ng opisina ninyo iyong LANDBANK a day before December 20, 2022, na mag-e-encash kayo ng ganoong kalaking halaga, P125 million, sa araw na iyan, December 20, 2022. Tama po ba?*

Ms. Acosta. *Tama po, Your Honor.*

Mr. Ligutan. Now, meaning, *iyong LANDBANK, na-notify na na ihanda iyong P125 million bago pa man maaprubahan ang disbursement voucher, bago pa man maihanda, mapirmahan, at saka ma-release ang tseke sa inyo?*

Mr. Bacquel. Objection, Your Honor, misleading. There's no testimony as regards that.

The Presiding Officer. Objection is sustained, Counsel. There's no basis for that yet.

Mr. Ligutan. Can I ask what is the basis for the objection? I can't recall.

Mr. Bacquel. The Court already ruled.

Mr. Ligutan. What is the...

The Presiding Officer. The ground for objection, Counsel, is misleading. The basis for that question has not yet been laid. The witness did not say anything about informing the bank before the voucher or checks were prepared.

Mr. Ligutan. Okay. Anyway, Your Honor, please, we'll move to the next points.

Voucher was signed, prepared; check was signed, prepared, released to you on the same day. So *hindi ba iyon pagpa-fast track, pagpa-fast track na pag-e-encash ng P125 million on the same day?*

Mr. Bacquel. Objection, Your Honor, vague and argumentative.

The Presiding Officer. Overruled. Witness may answer. Court would like to know her answer.

Mr. Ligutan. *Hindi ba minadali iyong pagdi-disburse— disbursement voucher, pagpeprepara ng tseke, pag-e-encash on the same day, P125 million? Yes or no?*

Ms. Acosta. *Dumaan po siya sa regular na proseso namin sa office, Your Honor.*

Mr. Ligutan. Being vague again. Now, as the SDO and project accountable officer, *hindi po ba na iyong pagmamadaling iyan, ikaw iyong nag-utos niyan? Tama po ba?*

Ms. Acosta. *Hindi po ako nag-utos, Your Honor.*

Mr. Ligutan. Okay. *Sino ang nag-utos sa inyo?*

Ms. Acosta. *Basta gi-process po iyon, Your Honor, on a regular processing po, Your Honor.*

Mr. Ligutan. Ma'am, Ma'am.

I think I have to repeat the question, Your Honor, because she did not answer the question.

Minadali. May nag-utos. When asked, sino ang nag-utos, sabi mo, hindi ikaw. I will ask this question again. Iyong publiko are very much waiting for an answer. Sino ang nag-utos ng pagmamadali ng pag-encash ng tsekeng iyan, P125 million, sa araw na iyan?

Mr. Bacquel. Objection, Your Honor, misleading.

Ms. Acosta. Wala po, Your Honor.

The Presiding Officer. Objection is sustained again, Counsel. There's no—The *pagmamadali* did not come from the witness, Counsel. It came from your question.

Mr. Ligutan. Your Honor, please...

The Presiding Officer. She said it went through the regular process of their office. Whether the regular process of their office is that fast or whatever, it's up to her.

Mr. Ligutan. Okay. Yes, Your Honor, please. I'll now go to the next points. Now, let's go back to the time you encashed P125 million. *Pagkatapos ma-verify ng bank teller iyong identification at saka pagkatapos i-approve iyong pag-e-encash ng tsekeng iyan, hindi po ba, you were instructed na magpunta sa backroom ng bangko?*

Mr. Bacquel. Objection, Your Honor, misleading. Your Honor, the witness hasn't testified yet that the teller...

Mr. Ligutan. Well, I am asking for information.

Mr. Bacquel. ...has verified.

The Presiding Officer. It may be leading, but it's okay to ask leading questions because this was testified to by another witness...

Mr. Bacquel. It's misleading.

Mr. Ligutan. Don't argue with the Judge.

The Presiding Officer. ...from LANDBANK that she went to the backroom.

Mr. Bacquel. Just to clarify, Your Honor.

The Presiding Officer. Yes.

Mr. Bacquel. The objection is grounded on—that it is misleading, Your Honor, because there is no testimony yet that the bank teller—any bank teller verified, Your Honor. There is no testimony yet from the witness, Your Honor.

The Presiding Officer. No testimony—He is cross-examining—rather, he is asking the witness on the basis of a testimony given before the Court, Counsel, by a LANDBANK official that Gina and, if I recall correctly, Colonel Lachica and/or Ortonio went to the backroom of the bank. And the bank officer, in fact, if I remember correctly, testified that there was a door leading to the...



Mr. Ligutan. Exit.

The Presiding Officer. ...to another exit, I presume.

Mr. Ligutan. Yes, Your Honor. Yes, Your Honor.

Mr. Bacquel. Your Honor.

Mr. Ligutan. I think that—

The Presiding Officer. That pertains to DepEd, Counsel.

Yes.

Mr. Bacquel. Your Honor, that may be the case, Your Honor, but it hasn't yet testified by the witness. So, with due respect to the Prosecution, the proper basis must be laid, Your Honor.

Mr. Ligutan. It already ruled among—

The Presiding Officer. Modify. Modify for this one, Counsel.

Mr. Ligutan. Okay.

The Presiding Officer. I stand corrected with respect to the backdoor testimony that it connected to DepEd. I distinctly remember that. Not with the OVP. I stand corrected.

Mr. Ligutan. Backroom, backroom, Your Honor. I am asking for the backroom.

Now, isn't it, isn't it—okay. In that afternoon, you were instructed to the backroom of the bank, *hindi po ba?*

Ms. Acosta. *Ano po iyon?* Backroom, bank room?

Mr. Ligutan. Backroom *po*, backroom. Back.

Ms. Acosta. Sorry *po*, sorry *po*, Sir, *ha*.

Mr. Ligutan. It's okay.

Ms. Acosta. Sorry *po*. Backroom.

The Presiding Officer. Attorney Ligutan, *kwarto sa likod o banyo?*

Mr. Ligutan. *Kwarto sa likod.*

The Presiding Officer. *Kwarto sa—*

Mr. Ligutan. Backroom.

Ms. Acosta. *Wala pong kwarto sa likod*, Your Honor.

Mr. Ligutan. Okay, okay.

Okay. Now, the question is simple. *Saan n'yo nakita 'yung P125 million na in-encash n'yo sa araw na iyon sa loob ng bangko?*

Ms. Acosta. *Doon po sa may likod ng teller*, Your Honor.

Mr. Ligutan. *Iyan.* Okay, now—*sa likod ng?*

Ms. Acosta. Open space *po*.

Mr. Ligutan. Okay. *Sa likod ng?*

Ms. Acosta. Teller.

Mr. Ligutan. Teller.

Now, Ma'am, can you describe for us, to give us a mental picture, how big the pile of a P125 million in cold cash is? *Ipa-describe.*

Ms. Acosta. Sorry, Sir, *ha*, *pero dili kaayo ko well-versed sa mga measure-measurement.*

Mr. Ligutan. Well-versed. Okay, we will help you.

Ms. Acosta. *Pero nakasulod siya sa—nakalagay siya sa box...*

Mr. Ligutan. Okay, okay.

Ms. Acosta. ...*na naka-bundle, tag-one million ang isa ka bundle na nakaputos, nakabalot og cellophane na selyo pa—selyado pa. Tama po.*

Mr. Ligutan. *Sinasabi mo, Ma'am, na hindi ka well-versed sa measurement. Tama po ba, hindi ba?*

Now, I will show you a simulated representation of P125 million. *Sinabi mo P1,000 bill, hindi ba?*

Show that to the screen, please.

You tell the public, Ma'am, if '*yung nakita mong P125 million in cold cash—*

Mr. Bacquel. Your Honor.

Mr. Ligutan. Wait. Not yet done. Not yet done.

The Presiding Officer. Counsel to finish the question, Attorney Bacquel.

Mr. Ligutan. Can you please confirm if the cold cash you saw, P125 million, do they look like that?

Mr. Bacquel. Your Honor.

The Presiding Officer. Counsel.

Mr. Bacquel. Before the Prosecution proceeds with the question, may we just ask as to the source of the photo and how it was generated and produced?

The Presiding Officer. Yes, Counsel, either it is distorted because the P1,000 bills look bigger. *[laughter]*

Mr. Ligutan. Your Honor—

Mr. Bacquel. Is this AI, Your Honor?

The Presiding Officer. I mean—

Mr. Ligutan. Yes, of course. That is simulated.

The Presiding Officer. Okay.

Mr. Bacquel. Is this AI?

Mr. Ligutan. Wait, wait, wait. Because we don't have P125 million in cold cash, so we had to resort to technology.

Mr. Bacquel. Is that, Your Honor, artificial intelligence? Is this AI-generated?

Mr. Ligutan. Yes.

The Presiding Officer. Counsel, allow—Counsels, if you will allow the Presiding Officer.

Ma'am Gina, sabi n'yo nakalagay po sa kahon, tig-iisang libong bundle. Ilang kahon po?

Ms. Acosta. *Dalawa, Your Honor.*

The Presiding Officer. *Gaano kalaki po 'yung kahon? Gamitin n'yo po 'yung kamay ninyo. Gaano kataas po? Gaano kataas? Gaano kataas po? Iyong kamay ninyo po sa baba paki—[gesturing with her hands]—ayan, para makita po namin. Ganiyan kataas at ganito kalapad, kasing lapad po ng witness stand? One hundred twenty-five million po iyan, dalawang kahong ganiyan?*

Ms. Acosta. *Opo, Your Honor.*

The Presiding Officer. *Binilang n'yo po ba? Tinanggal n'yo po ba mula sa kahon o hindi na?*

Ms. Acosta. *Tinanggal po sa kahon, Your Honor.*

The Presiding Officer. *Pagkatanggal ninyo sa kahon, ibinalik n'yo ba sa kahon?*

Ms. Acosta. *Hindi po, Your Honor.*

The Presiding Officer. *Saan ninyo na nilagay?*

Ms. Acosta. *Nilagay ko po sa aking apat na bag.*

The Presiding Officer. *Ito po 'yung duffel bag?*

Ms. Acosta. *Parang traveling bag po, Your Honor, na oblong.*

The Presiding Officer. *Traveling bag, apat pong ganoon?*

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. Okay.

Mr. Ligutan. I'll proceed, Your Honor.

The Presiding Officer. Your witness, Counsel.

Mr. Ligutan. *Sinabi mo, Ma'am, na 'yung P125 million naka-bundle into P1,000 bills, tapos sa isang bundle is P1 million. Again, para sa ating mga kababayan na hindi pa nakakakita, how does a one million pile is?*

The Presiding Officer. Counsel, is that an actual thing again or a reproduction?

Mr. Ligutan. [off-mike] Reproduction, Your Honor.

Mr. Bacquel. Your Honor.

The Presiding Officer. Yes. While you are showing the witness, Attorney Bacquel.

Mr. Bacquel. May we just interpose an objection as regards presenting the witness those props, Your Honor, inasmuch as the parties are uncertain—the Defense is uncertain as to how is that an accurate representation of what the Prosecution claims to be, Your Honor.

Mr. Ligutan. I will ask. I will ask the question, Your Honor, please.

The Presiding Officer. Before I rule on the objection, yes, Counsel, ask your question. And kindly don't cover Ms. Gina.

Mr. Ligutan. So sorry.

Ma'am, sinabi mo 'yung P125 million naka-pile by P1 million each. Tama po ba?

Ms. Acosta. *Opo.*

Mr. Ligutan. And then, 'yung bills ginamit is P1,000. *Tama po ba?*

Ms. Acosta. *Opo.*

Mr. Ligutan. *Sinabi mo hindi ka well-versed sa measurement, iyon ang sabi mo, 'di ba? [showing the witness] Kaya nga heto 'yung simulated 10 bundles, the size is similar to P1,000 bills. Ma'am, 'yung isang milyon—puwede n'yo pong hawakan if you want. If you want lang, huh? Walang idagan, Ma'am, huh?*

Ms. Acosta. Uhm-uhm.

Mr. Ligutan. *Iyong P1 million, kamukha ba ng isang bundle na ito?*

Mr. Bacquel. Your Honor—

Mr. Ligutan. Wait, wait.

The Presiding Officer. Is that your question, Attorney Ligutan?

Mr. Ligutan. Yes.

The Presiding Officer. Yes, Attorney Bacquel.

Mr. Bacquel. Your Honor, we manifest that upon the examination of Assisting Counsel, these

appear to be just blue-colored lengthwise papers, wrapped in plastic, with 10 bundles each. How is this an accurate representation of the size of whatever the Prosecution claims to be, Your Honor? They are yet to lay the proper basis as regards this, Your Honor.

The Presiding Officer. Counsel claims it's a mere simulation.

Mr. Ligutan. Yes.

The Presiding Officer. If that is an objection, Counsel, I will have to overrule the objection. Witness, please answer.

Ma'am, *parang ganiyan po ba 'yung bundle ng tig-iisang libo na winidro* (withdraw) *ninyo?*

Ms. Acosta. Your Honor, *may I know po kung ito po ay*—is this P100,000?

Mr. Ligutan. Yes.

Ms. Acosta. This one, is this P100,000?

Mr. Ligutan. Ma'am, I think we did not—

The Presiding Officer. *Sa pagkakaalala n'yo po, kung tag-iisang libo po iyan.*

Mr. Ligutan. Yes.

The Presiding Officer. *Sampung bundle ng tag-iisang libo na ang kabuuan ay isang milyon sa isang balot ng plastic. Ganiyan po ba 'yung itsura noong inyong winidro? Iyong bundle po ha, 'yung bundle.*

Ms. Acosta. *Basta nakabalot lang po siya ng selopin* (cellophane), Your Honor, *tapos binilang po namin.*

The Presiding Officer. Ma'am, when you say "*selopin*," plastic?

Mr. Ligutan. Plastic.

Ms. Acosta. *Ito*, Your Honor.

The Presiding Officer. *Kaya nga. So, ganiyan po 'yung size?*

Ms. Acosta. *Oo, nakaselyo po*, Your Honor.

The Presiding Officer. *Bagong pera po ba, lumang pera?*

Ms. Acosta. *Bagong pera po*, Your Honor.

The Presiding Officer. Okay. So, *mga ganyan nga po 'yung size? Iyon lang ang tinatanong sa inyo ni Attorney Ligutan. Huwag nating pag-usapan 'yung bigat, 'yung hugis.*

Mr. Ligutan. We are going to the weight later.

The Presiding Officer. *Halos ganiyan po ba?*

Ms. Acosta. *Ganito po*, Your Honor, *basta nakabalot po siya ng selopin.*

The Presiding Officer. Ma'am, *kayo naman. Makikita n'yo naman kung halos parehas.*

Ms. Acosta. *Parang ganito po.*

The Presiding Officer. *Halos parehas po ba? Iyon lang, ganoon kasimple 'yung tanong.*

Ms. Acosta. *May similarity, gamay*, Your Honor. *Gamay man gud siya, lapad-lapad man ang kuwarta.*

The Presiding Officer. Okay.

Mr. Ligutan. Thank you, Your Honor.

Now, Madam Witness, *ilan iyan?* One, two, three, four, five, six, seven, eight. So, 125 of these bundles, correct? *Iyong nakita n'yo sa hapon na iyon, December 20, 2022. Tama po ba?*

Ms. Acosta. *Unsa—*

Mr. Ligutan. *Iyon 'yung nakita ninyo sa bangko na in-encash ng Office of the Vice President, cash—cold cash—sa hapon na iyon. Tama po ba?*

Ms. Acosta. *Ano po, P125 million po ito, Your Honor, ang nakita nako among giihap.*

Mr. Ligutan. Yes.

Ms. Acosta. *Gibilang po namin, Your Honor.*

Mr. Ligutan. Yes, 125.

Mr. Bacquel. Your Honor.

The Presiding Officer. Just to clarify, Gina, before—Attorney Bacquel, before I recognize you. Bundle count *lang po ang ginawa ninyo?*

Ms. Acosta. Bundle count *po*, Your Honor.

The Presiding Officer. *Hindi n'yo na po binuksan 'yung cellophane na sinasabi ninyo, iyong plastic? Binilang n'yo na lang po, 125 'yung ganoon?*

Ms. Acosta. *Hindi na po*, Your Honor. *Nakaselyo po kasi siya*, Your Honor.

The Presiding Officer. So *binilang n'yo na lang po, 125 na ganoon?*

Ms. Acosta. *Opo*, Your Honor.

The Presiding Officer. *Hindi na isa-isa? Hindi n'yo na binilang isa-isa 'yung bill, 'yung tig-iisang libo?*

Ms. Acosta. *Dili na tig—*

The Presiding Officer. *Hindi na po?*

Ms. Acosta. *Hindi na.*

The Presiding Officer. Okay, Attorney Bacquel, yes. What is your comment or objection?

Mr. Bacquel. Your Honor, may we respectfully ask if the props could already be removed, Your Honor? As it's not necessary for the testimony of the witness.

Mr. Ligutan. It is, Your Honor. It is. It is very much—

The Presiding Officer. Are you done yet with that, with your simulation, Counsel?

Mr. Ligutan. Not yet, Your Honor. Not yet, not yet.

The Presiding Officer. Okay. Wind it up.

Mr. Ligutan. Yes.

Now, I'm sure, Madam Witness, with your figure, *kanang imong kadak-on sa lawas*, Ma'am, you would not be able to bring *'yung kadami-daming P125 million*, in cold cash, *na iyan. Tama po ba?*

Ms. Acosta. *Tama po.*

Mr. Ligutan. Now, who were with you in the bank, *'yung moment na iyan?*

Ms. Acosta. Your Honor, *ibig sabihin po ba kung sinong kasama ko pagpunta sa bangko?*

Mr. Ligutan. *Iyong nasa bangko na, sa loob ng bangko, kaharap 'yung P125 million*, in cold cash. *Sino 'yung kasama mo from the Office of the Vice President, kung mayroon man?*

Mr. Bacquel. Your Honor, before the witness may answer, Your Honor.

The Presiding Officer. Yes, Attorney Bacquel.

Mr. Bacquel. The question of the Prosecution is totally unrelated to the use of the props, Your Honor.

Mr. Ligutan. Your Honor, I am going there.

Mr. Bacquel. We would just request, Your Honor—I'm still not finished. May we just

respect—the Defense respectfully requests, Your Honor, that these be removed until the relevant question is interposed, considering that the witness has the right to be respected as well in the proceedings, Your Honor.

Mr. Ligutan. Wait, wait, wait.

The Presiding Officer. I think I see—Attorney Bacquel, I think the Court sees well, Attorney Ligutan is getting to—

Get to it, Attorney Ligutan.

Mr. Ligutan. Yes, yes. Okay, now.

The Presiding Officer. Ms. Gina, *may kasama po ba kayong ibang tao mula sa OVP noong pinik (pick)-up ninyo 'yung pera?*

Ms. Acosta. *Mayroon po*, Your Honor.

The Presiding Officer. *Sino po?*

Ms. Acosta. *Si Asec Ortonio po*, Your Honor.

The Presiding Officer. Okay. Attorney Ligutan, your witness.

Mr. Ligutan. Okay. Now, *walang miyembro ng VPSPG? Okay, 'yung kasama ninyo, 'yung Vice Presidential Special Protection Group, kasama ninyo sa loob ng bangkong iyan. Tama po ba?*

Ms. Acosta. *Wala*, Your Honor, *pero ang aming driver po ay member po ng VPSPG.*

Mr. Ligutan. Yes, Ma'am.

Now, even with such large amount of money, *hindi ninyo naisipan na mag-request ng isang or maraming escort na sasama sa inyo sa bangko at saka lalabas with those bills. Tama po ba?*

Mr. Bacquel. Objection, Your Honor, argumentative.

Mr. Ligutan. Your Honor—

The Presiding Officer. Overruled, Counsel. Witness will answer.

Ms. Acosta. *Ang gisama ko po*, Your Honor, *nakisuyo po ako na samahan po ako ni Asec Ortonio.*

Mr. Ligutan. *Oo. Ortonio lang.* Okay.

The Presiding Officer. *Nakiusap ka na samahan ka ni Asec Ortonio?*

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. Okay.

Mr. Ligutan. How did you bring out, out of the bank, *iyon, 'yung—that P125 million?*

Ms. Acosta. Your Honor, *puwede ulitin ang question?*

Mr. Ligutan. Okay. *Paano ninyo inilabas ng bangko 'yung P125 million na iyan?*

Ms. Acosta. *May tumulong po sa akin*, Your Honor.

Mr. Ligutan. Okay. Now, *sino 'yung tumulong sa inyo?*

Ms. Acosta. *Iyong security ng LANDBANK po*, Your Honor.

Mr. Ligutan. This is the question now. Okay. *Iyong P125 million na iyan*, did you put it into bags or you brought them out one by one?

Ms. Acosta. *Nilagay po iyon sa apat na bag*, Your Honor.

Mr. Ligutan. *Apat na bags.* So *hindi po hand-carry lang 'yung bills na iyan?*

Ms. Acosta. *Hindi*, Your Honor.

Mr. Ligutan. Okay. So now we will give in to what the Defense wants, Your Honor, please.

Having been satisfied that this person cannot bring, out of the bank using her own two hands, these bills.

Now, we can now—Attorney Jay...

The Presiding Officer. Assisting Counsel.

Mr. Ligutan. ...you may now remove.

The Presiding Officer. Proceed, Counsel.

Mr. Ligutan. Okay. Now, you said you put them *sa mga* traveling bags. *Ilang* bags? *Apat po, hindi ba?*

Ms. Acosta. *Apat*, Your Honor.

Mr. Ligutan. Can you describe to us *'yung size ng mga* traveling bags *na ito?*

Ms. Acosta. [*gesturing with her hands*] *Ganito*, Your Honor, *pa-oblong*.

Mr. Ligutan. Okay. Now—okay, *pa-oblong*. I will show you now representation of P125 million inside four traveling bags. *Ito 'yung tanong* now. Okay. Four traveling bags with P1,000 bills inside them. *Iyong hapon na iyon*, Ma'am, *maaalala n'yo ba*, Ms. Gina F. Acosta, *kung 'yung na-withdraw ninyo na P125 million na isinilid ninyo sa four* traveling bags, do they look like these being flashed on screen?

The Presiding Officer. Before you answer, Gina. Counsel for Respondent.

Mr. Bacquel. Your Honor, we interpose the same objection as regards the use of AI-generated imagery, Your Honor, without laying the proper basis as to how it accurately represents what the Prosecution claims to be, Your Honor.

Mr. Ligutan. No, is it—

Mr. Bacquel. It has no basis, Your Honor.

The Presiding Officer. The Court will simply note the objection of Counsel. And, Counsel, the Court will also take note of your continuing objection with respect to the use of AI-generated representations of what he is asking the witness about, if it shows closely or not, what bags she used to bring out the P125 million.

With your permission, Counsel, the Court will note your continuing objection, the use of AI representations.

Mr. Bacquel. Thank you, Your Honor.

Mr. Ligutan. Thank you so much.

The Presiding Officer. And Counsel will please—witness will please answer.

Ma'am Gina, *parang ganyan po ba 'yung apat na bag na pinaglagyan ninyo?*

Ms. Acosta. *Dili inaana—hindi ganyan*, Your Honor, *kasi ang opening niyan* is round.

Mr. Ligutan. *Opo*.

The Presiding Officer. *Iyon buo?*

Ms. Acosta. *Ang sa akin, ang dinala ko po na bag paganoon po* [*gesturing with her hands*] *ang zipper*.

The Presiding Officer. *Buo, pahaba 'yung kabuuan ng bag*. Okay, number one, *iyon ang isang pagkakaiba*.

Kulay?

Ms. Acosta. *Kulay* black.

The Presiding Officer. *Pareho. At apat na bag kumasya 'yung 125?*

Ms. Acosta. *Apat po na bag*. Your Honor.

The Presiding Officer. Okay.

Mr. Ligutan. Okay. Thank you so much.

Ma'am, in putting the bills inside the bag, okay, *sino ba 'yung tumulong sa paglalagay ng mga bills, 'yung P1,000 bills sa mga bags na ito? Sino 'yung gumawa niyan?*

Ms. Acosta. *Ako po, Your Honor, ang naglagay ng mga pera sa bag.*

Mr. Ligutan. All right. *May miyembro ba ng VPSPG na tumulong sa iyo sa paglalagay ng mga bills na iyan sa bag?*

Ms. Acosta. *Wala, Your Honor.*

Mr. Ligutan. *Wala din.* How long did it take for you to put all the P125 million into the bags?

Ms. Acosta. *Hindi ko maalala, Your Honor.*

Mr. Ligutan. *Maaalala ninyo po ba, kasi kayo iyong naglagay doon, maaalala ninyo po ba, gaano ba kabisigat iyong isang bag containing piles of P1,000 bills piled into one million each?*

Ms. Acosta. *Basta mabisigat po, Your Honor.*

Mr. Ligutan. *Mabisigat.* What about 30 kilograms per bag, *kung maaalala mo?*

Ms. Acosta. *Hindi ko exactly maalala, Your Honor.*

Mr. Ligutan. All right. *Ikaw ba ay nagkarga ng isa sa mga four bags na ito?*

Ms. Acosta. *Wala, Your Honor.*

Mr. Ligutan. So, *sino iyong nagkarga?*

Ms. Acosta. *Bale ganito po, kung ang pera ay nandoon na sa lahat na pina—nailagay na po sa apat na bag, sa dihang—on a while na ilabas ko na po, Your Honor, tumulong po sa akin ang dalawang security guard, Your Honor. Ginanoon nila, Your Honor, [demonstrating] papunta sa entrance ng bangko kung saan naghintay po ang aming sasakyan, Your Honor. Tapos ako, Your Honor, nagsunod—nagtan-aw sa duha ka security, Your Honor.*

Mr. Ligutan. All right.

Now, what about Lemuel Ortonio? *Ano ba iyong ginawa niya, kung mayroon man, sa paglalabas ng four bags containing P125 million in cold cash? May naitulong ba si Ginoong Lemuel Ortonio?*

Ms. Acosta. *Wala po, Your Honor.*

Mr. Ligutan. *Wala.* Again, *walang escorts; no request for escort, hindi po ba?*

Ms. Acosta. *Wala, pero ang amo-ang—amo-ang driver, Your Honor, is a member of VPSPG.*

Mr. Ligutan. *Isang driver.*

Ms. Acosta. *Duha, Your Honor. Dalawa.*

Mr. Ligutan. Two drivers. Okay. Aside from these two drivers, *iyong tanong ko is, aside from the two drivers, walang ibang miyembro ng VPSPG?*

Mr. Bacquel. Asked and answered, Your Honor.

The Presiding Officer. Asked and answered, Counsel.

Mr. Ligutan. Okay. What time did you leave the bank?

Ms. Acosta. *Ano, Your Honor?*

Mr. Ligutan. *Anong oras kayo lumabas ng bangko?*

Ms. Acosta. *Hmm, hindi ko ka—Hindi ko exactly maalala, Your Honor.*

Mr. Ligutan. *Hindi mo maalala.* Now, *galing sa trolley—sa trolley, hindi ba, papunta ng mga sasakyan, okay, sino iyong nag-transfer ng mga bags na iyan?*

Mr. Bacquel. Misleading, Your Honor. There is no testimony as to the trolley or—

The Presiding Officer. I did not hear trolley as well, Counsel.

Mr. Ligutan. Okay. I will reform, Your Honor.

Now, *sino ba iyong nag-transfer, galing sa bangko papunta sa sasakyan, okay, ng four bags na iyan?*

Mr. Bacquel. Asked and answered, Your Honor.

The Presiding Officer. Attorney Gina, with the indulgence of counsels, *sabi ninyo, wala kayong binuhat sa apat na bag. Tama po?*

Ms. Acosta. *Wala po*, Your Honor. *Ka dili ko kada-og*

The Presiding Officer. *Wala ring binuhat si Ginoong Ortonio sa apat na bag.*

Ms. Acosta. *Wala sab*, Your Honor.

The Presiding Officer. *Ang nagbuhat, dalawang security guard ng bangko.*

Ms. Acosta. *Sila po ang tumulong sa—o sila*, Your Honor.

Mr. Ligutan. *Tig-dalawang bag ang binuhat nila o may trolley silang ginamit?*

Ms. Acosta. *Hindi ko—hindi kaayo ka-remember kung nagamit sila og trolley*, Your Honor. *Ang ma-remember ko*, Your Honor, *gi-drag nila ang duha ka bag tapos—*

The Presiding Officer. *Dalawang tao—dalawang bag kada guard.*

Ms. Acosta. *Opo*, Your Honor.

The Presiding Officer. *Isahang labasan iyong apat na bag.*

Ms. Acosta. *Sabay po sila*, Your Honor, *at nandoon po ako*, Your Honor, *nagsunod-sunod sa ila, nagtan-aw*, Your Honor.

The Presiding Officer. Okay. Okay. Your witness, Counsel.

Mr. Ligutan. All right. Now, so *paano ninyo trinansfer* (transfer), *dinala iyong four bags na iyan galing LANDBANK Shaw Boulevard, papunta sa pinuntahan ninyo* after that?

Ms. Acosta. *Gisakay sa ...*

Mr. Ligutan. *Sinakay sa?*

Ms. Acosta. ... *amo-ang service*, Your Honor.

Mr. Ligutan. Service. *Pag sinabing service, ibig ninyong sabihin, sasakyan?*

Ms. Acosta. *Opo.*

Mr. Ligutan. *Ilang sasakyan, kung mayroon man?*

Ms. Acosta. *Dalawa*, Your Honor.

Mr. Ligutan. *Kaninong sasakyan iyong pinagsidlan, pinagsakyan ng perang iyan?*

Ms. Acosta. *Sa OVP*, Your Honor.

Mr. Ligutan. OVP. *Sumakay ka ba sa similar, sa parehong sasakyan* together with Lemuel Ortonio?

Ms. Acosta. *Ako, nagsakay sa isang sasakyan*, Your Honor, *tapos si Ortonio po, nagsakay sa isang sasakyan*, Your Honor.

Mr. Ligutan. Okay. And *saan kayo nagpunta* after that?

Ms. Acosta. *Nagpunta po kami sa office—office of the—sa office. Sa office po ng OVP.*

Mr. Ligutan. Office of the Vice President. *Anong oras kayo dumating doon*, if at all?

Ms. Acosta. *Mga—nakaabot mi dito mga 4:00 or plus kaunti.*

Mr. Ligutan. *Umabot kami doon at 4:00.*

Okay. Four or four o'clock nang kaunti?

Ms. Acosta. Four po. Four plus nang hapon, hapon.

Mr. Ligutan. Four plus nang hapon. Four plus nang hapon.

Who assisted you, *kung mayroon man*, in transferring the bags from the cars to the Office of the Vice President, *kung mayroon man*?

Ms. Acosta. *Pagdating ko doon sa fourth floor, Your Honor, sa office po kasi namin mayroon po talagang naka-duty na mga VPSPG.*

Mr. Ligutan. Uh-huh.

Ms. Acosta. *So noong naka-arrive na kami sa fourth floor, Your Honor, open na ang car tapos nakita ng VPSPG na nag-action ako na kunin ang bag. Nakita nila na dili ko kaya, tumulong po ang dalawang VPSPG, Your Honor, na ang bag makuha doon sa sasakyan tapos ilagay—na ilagay namin sa trolley.*

Mr. Ligutan. And then?

Ms. Acosta. *Tapos sakay na kami, Your Honor, sa elevator na hindi tao ang sumasakay. Ano iyong—service elevator, Your Honor.*

Mr. Ligutan. Service elevator.

Ms. Acosta. *Oo. Sakay na kami.*

Mr. Ligutan. Okay. Now, *saan ninyo dinala iyong pera?*

Ms. Acosta. *Dinala ko po sa aking extension office, Your Honor.*

Mr. Ligutan. Extension office. *Iyong four traveling bags?*

Ms. Acosta. *Opo, Your Honor.*

Mr. Ligutan. Now, *ito iyong tanong now, Madam Witness. Hindi po ba noong November 25, 2024 Committee on Good Government and Public Accountability hearing, sinabi ninyo doon—please show the TSN—that right after encashment, pagkatapos pong ma-encash iyong P125 million, tinawagan mo sino?*

Ms. Acosta. *Si SO officer, Your Honor.*

Mr. Ligutan. Colonel Lachica?

Ms. Acosta. Lachica.

Mr. Ligutan. To quote, *sinabi mo doon you called him and you told him na ito na iyong—ready na iyong P125 million, tama po ba?*

Ms. Acosta. *Sinabihan ko po siya, Your Honor, na na-encash ko na po ang tseke for the confidential funds.*

Mr. Ligutan. Yes ma'am.

Ikaw iyong special disbursing officer. Ikaw iyong nag-prepare ng confidential—iyong physical and financial plan. Hindi mo masabi kung empleyado ba—hindi mo masagot-sagot iyong napakasimpleng tanong kung empleyado ba si Colonel Lachica. The question is, why did you have to call Colonel Lachica to inform him, "Colonel Lachica, ready na ang P125 million." Bakit?

Ms. Acosta. *Kasi po may instruction po sa taas, Your Honor, ang aking head of agency, na kung ma-encash ko po ang tseke, i-release ko po kay Sir Lachica, kinsa iyang gi-designate nga special officer po, security officer po sa Office of the Vice President. Naa siyay order, Your Honor.*

Mr. Ligutan. Okay. Ma'am, *sabi mo tinawagan mo si Colonel Lachica kasi iyon iyong utos ng head of agency. Siguro sa ating mga kababayan na hindi alam, sino ba, sino ba ang head*

of agency *na nag-utos sa iyo*, as the special disbursing officer, *na ibigay iyong* P125 million in cold cash *sa isang* security officer Colonel Raymund Dante Lachica?

Ms. Acosta. *Ang nag-utos po sa akin na i-release ang pera na P125M sa security officer na si Colonel Lachica ay si Ma'am Sara Duterte.*

Mr. Ligutan. You turned over P125 million to Colonel Lachica precisely *para siya iyong mag-disburse ng* P125 million for the supposed confidential activities *ng* Office of the Vice President, *tama po ba?*

Mr. Bacquel. Misleading, Your Honor.

Mr. Ligutan. What?

The Presiding Officer. Why is it misleading, Counsel?

Mr. Bacquel. Your Honor, the witness has yet to testify on anything that the question is premised on, Your Honor.

Mr. Ligutan. Wait, I'm leading her.

The Presiding Officer. Overruled, Counsel. Witness said that she was instructed by the head of agency the vice president, to give the money to—*anong word ginamit ninyo*, ma'am? Transfer?

Ms. Acosta. Release.

The Presiding Officer. Release. To release the money to Colonel Lachica.

Proceed, Counsel.

Mr. Ligutan. Now, *hindi po ba na nag-testify ka rin sa* November 25, 2024 Committee on Good Government hearing *na ibinigay mo iyong* P125 million *kay* Colonel Lachica, *kasi si* Lachica *lang iyong may alam*, *siya lang iyong may alam* on how to implement *iyong* confidential activities, *hindi po ba?*

Ms. Acosta. Yes *po*. *Siya po ang eksperto.*

Mr. Ligutan. Yes *po*—wait. You can explain *po* later, ma'am, *ha*. Okay, now—

Ms. Acosta. Sorry *po*.

Mr. Ligutan. And you only came to know that Colonel Lachica knows how to implement the confidential activities, *nalaman ninyo lang na si* Colonel Lachica *iyong may alam paano i-implement iyong* confidential activities, precisely because *iyon iyong sabi sa inyo ni* VP Inday Sara Duterte, *tama po ba?*

Ms. Acosta. *Kasi po ang security—*

Mr. Ligutan. Wait, ma'am. With all due respect *po*, *pupuwede pong sagutin ng* yes or no without explanation. Ma'am, I will allow you, *pero po ba*, *pupuwede po bang sagutin po muna?* Yes or no, I will allow you to explain.

Mr. Bacquel. Your Honor, the witness is answering, Your Honor. May the witness be allowed to finish her answer?

The Presiding Officer. She already started answering, Counsel. Let her answer and you can continue with your direct.

Kindly answer, *pakisagot po*, Ma'am Gina, *iyong katanungan.*

Ms. Acosta. Your Honor, may I request to repeat the question, Your Honor?

Mr. Ligutan. Okay, now—

The Presiding Officer. *Pakiulit na lang po*, Attorney Ligutan.

Mr. Ligutan. I will. *Nalaman mo na si* Colonel Lachica *iyong may alam paano i-implement iyong* confidential activities, *kasi nga*, *iyon iyong sabi sa inyo ni* VP Sara Duterte, *tama po ba?*

Ms. Acosta. Yes, *siya po ang* security officer *na sinabi ni* bise presidente.

Mr. Ligutan. All right. Now, I'm showing you *iyong* transcript, Page 140 this time. Do we have it? Page 140.

Tanong sa inyo, Representative Luistro: "Then why did you give all the money to Colonel Lachica?

Iyong sagot ninyo was: "Because *po may utos po ni* Ma'am Inday Sara *na sa kanya ko po* i-release *kasi siya po ang nakakaalam kung paano po* i-implement *ang mga* programs and programs and activities in line *po sa* confidential activities." You confirm that?

Ms. Acosta. Yes, Your Honor.

Mr. Ligutan. Madam, since *si* Lachica *iyong may alam paano* i-implement *iyong* project under confidential funds, *siya din iyong nag-i-implement ng mga* confidential activities, this time, ma'am, *hindi na* 2022. This time for 2023, correct?

Ms. Acosta. Same question, Your Honor.

Mr. Ligutan. Okay, I will repeat the question. *Kasi ang sabi mo ipinabigay ni* VP Sara *iyong pera kay* Lachica *kasi siya iyong may alam paano* i-implement *iyong* confidential activities. Okay, now, *iyong tanong* is, *si* Colonel Lachica *din iyong nag-i-implement ng lahat ng* confidential activities, this time, ma'am, *para sa taong* 2023, *tama po ba?*

Ms. Acosta. *Tama po*, Your Honor.

Mr. Ligutan. *Tama po*. Now, this is the question now. You will agree that handling *at saka* *iyong* *pagdi-disburse ng* P500 million ...

Ms. Acosta. Five hundred?

Mr. Ligutan. ... *na pera ng bayan*, ma'am, *pondo ng bayan*, *hindi iyan trabaho ng isang* security officer *kagaya ni* Colonel Lachica, *tama po ba?*

Mr. Bacquel. Objection, Your Honor.

Mr. Ligutan. What's the objection?

The Presiding Officer. Counsel, what's the objection?

Mr. Bacquel. Your Honor, the objection is grounded that it's argumentative and it calls for a conclusion, Your Honor.

The Presiding Officer. Kindly modify, Counsel, it is argumentative.

Mr. Ligutan. Okay, now—

The Presiding Officer. You can modify and get the response you want from the witness.

Mr. Ligutan. Yes, ma'am—Yes, sir. Now, Madam Witness, *hindi po ba na base sa* paragraph 3.27 *ng* Joint Circular 2015—please flash that one—*iyon iyong trabaho ng isang* security officer, refers to a personnel who, by reason of his duty or employment, has been officially designated to have access to security information. *Tanong: Andian ba diyan, nakasulat, na pupuwedeng* *iyong isang* security officer *iyong mag-i-implement ng* confidential activities *at saka iyong magdi-disburse ng* confidential funds *ng isang ahensiya* like the Office of the Vice President?

Mr. Bacquel. Same objection, Your Honor, argumentative and calls for a conclusion.

The Presiding Officer. If she knows, Counsel. Because she answered that she based her actions on the—based on JC 2015-1.

Ma'am Gina, *pakisagot po iyong tanong. Bahagi po ba ng trabaho ng* security officer, *ayon sa* joint circular, *ang tumanggap ng* confidential *at mag-implement ng* confidential funds?

Ms. Acosta. *Siya po ang—siya po ang may alam, siya po ang eksperto*, Your Honor, *sa pagpatupad po ng* confidential operation and activities, Your Honor, *kasi siya po ang may access* when it comes to national security, Your Honor.

The Presiding Officer. *Ayon po kanino, ma'am? Ayon sa* joint circular, *ayon sa interpretasyon* *ninyo, o ayon sa utos sa inyo?*

Ms. Acosta. *Ayon po sa joint circular, Your Honor.*

The Presiding Officer. *Saan po sa joint circular, alam ninyo po?*

Ms. Acosta. *At saka ayon po sa utos ng head of agency kasi mayroon po siyang security officer na order, Your Honor.*

The Presiding Officer. Counsel, your witness.

Mr. Ligutan. *Of course, iisa-isahin natin iyan. Sinabi mo na sa joint circular iyong basehan na pupuwede iyong security officer, okay, mag-disburse ng confidential funds. Ma'am, I will give you all the time you will need. Basahin 2015 Circular. Saan diyan? Saan diyan makikita iyong sinasabi mong pupuwedeng security officer iyong maggasta, mag-disburse ng confidential funds?*

Ms. Acosta. *Your Honor, based po sa aking nalalaman sa JC, ako po ang special disbursing officer. Ang gawain ko po, Your Honor, is to disburse pero ang pag-implement po ng mga confidential operation activities in related to confidential fund, iyan po ay saklaw po sa trabaho po ng isang security officer kasi wala po akong alam. Hindi ako eksperto, Your Honor, sa pagpatupad ng various confidential activities or operations on the grounds, Your Honor.*

Mr. Ligutan. *Okay. I will tailor—I mean, I will make this narrower. Iyong pagdi-disburse, iyong pagbabayad, paggagamit ng confidential funds, based sa circular, trabaho ba iyan ng isang security officer?*

Mr. Bacquel. *Asked and answered, Your Honor.*

The Presiding Officer. *Overruled. Overruled. Witness will please answer.*

Ms. Acosta. *Ano po iyon?*

Mr. Ligutan. *Trabaho po ba ng isang disbursing—ng isang security officer iyong paggamit ng confidential funds, pag-disburse ng confidential funds? Trabaho po ba iyan based sa circular?*

Ms. Acosta. *Basta ang trabaho ko, Your Honor, ako po ang disbursing officer, Your Honor. Ang pagpa-implement po ng various confidential activities in relation po sa confidential fund, Your Honor, ay saklaw po sa trabaho ng security officer, Your Honor, kasi ...*

The Presiding Officer. *Ma'am Gina.*

Ms. Acosta. *... confidential po iyon, Your Honor.*

The Presiding Officer. *Ma'am Gina, ang tanong po, trabaho ba ng security officer gastusin, i-release, ilabas iyong confidential fund na dinisburse (disburse) po ninyo? Kung oo po, saan sa joint circular nakalagay iyon?*

Ms. Acosta. *Ano iyon, sir?*

The Presiding Officer. *Trabaho po ba ng security officer gastusin iyong ni-release ninyong confidential fund? Iba po iyong implement. Siyempre siya iyong magagawa ng surveillance. Siyempre siya po iyong kukuha ng mga operative na iyon sa intelligence. Pero iyong paggastos po, trabaho po ba ng security officer gastusin iyong dinisburse ninyong confidential fund?*

Ms. Acosta. *Hindi po, Your Honor. Trabaho po iyan ng disbursing officer, Your Honor. Pero pag nai-release ko na po ang pera sa kanya, Your Honor, pina-receive ko sa kanya, Your Honor, magbigay po siya sa akin ng utilization report, Your Honor. Iyon po ang sign or evidence, Your Honor, na nagawa, na-implement na po niya, Your Honor, ang mga various confidential activities or operation, Your Honor, sa ground kasi siya po ang expert, Your Honor.*

The Presiding Officer. *So, sa pananaw po ninyo, ang ginamit ninyo pong salita, "release."*

Ms. Acosta. *Yes, Your Honor.*

The Presiding Officer. *Iyong pag-release po ninyo ng pera kay Colonel Lachica ay dapat i-liquidate na po niya iyon?*

Ms. Acosta. *I-liquidate po niya, Your Honor, after po matapos po ang pagpa-implement ng various confidential activities po sa ground. Your Honor. Kasi siya po ang eksperto, Your Honor.*

The Presiding Officer. *Pero siya po ang gumastos ng pera sa iba't-ibang nakatanggap ng confidential fund. Tama po?*

Ms. Acosta. *Ano iyon, Your Honor?*

The Presiding Officer. *Siya po ang gumastos ng pera at nag-abot ng pera sa iba't-ibang pinagbigyan niya base sa intelligence at confidential operations niya. Tama po ba?*

Ms. Acosta. *Siya po, Your Honor. Kasi siya po ang may alam kung paano po i-implement ang mga confidential operations, activities, Your Honor, kasi confidential po iyon, Your Honor. Wala po akong alam.*

The Presiding Officer. *Hindi po ba sang-ayon sa joint circular, kayo dapat ang nagdi-disburse direkta sa beneficiary or recipient?*

Ms. Acosta. *Hindi naman po sinabi, Your Honor, na ako ang magpunta doon sa ground, Your Honor. Kasi wala po akong alam, Your Honor. Kung ipapatupad, wala po akong security, wala po akong access, Your Honor, sa tinatawag na national—security information, Your Honor.*

The Presiding Officer. *Huling katanungan po kaugnay nito bago ko ipasa kay Attorney Ligutan. Sa pananaw ninyo po ba sa pag-release ninyo kay Colonel Lachica, recipient si Colonel Lachica ng confidential fund o ginampanan po niya itong tungkulin niya sa pag-disburse lamang?*

Ms. Acosta. *Nalibog po ako. I'm sorry. I'm confused.*

The Presiding Officer. *Recipient po ba si Colonel Lachica o tagapagbigay lang siya noong perang ni-release ninyo sa kaniya?*

Ms. Acosta. *Wait.*

The Presiding Officer. *Iyong pera po ba ay tinanggap ni Colonel Lachica para sa sarili niya?*

Ms. Acosta. *Hindi, Your Honor.*

The Presiding Officer. *Tinanggap po niya para ipamigay sa ibang tao?*

Ms. Acosta. *Tinanggap po niya, Your Honor, para po, Your Honor, sa mga gastusin in relation po sa pagpapatupad ng confidential activities or operations, Your Honor, kasi siya po ang may alam, Your Honor, at saka confidential in nature po, Your Honor.*

The Presiding Officer. *So, sa pananaw po ninyo hindi siya recipient, si Colonel Lachica.*

Ms. Acosta. *Iyon po ang explanation ko sa iyo kanina, Your Honor.*

The Presiding Officer. *Hindi nga po siya recipient.*

Ms. Acosta. *Dili, Your Honor.*

The Presiding Officer. *Hindi. Okay.*

Mr. Ligutan. *Dili is hindi. Now—may I proceed, Your Honor?*

The Presiding Officer. *Attorney Ligutan.*

Mr. Ligutan. *You said that you gave the P125 million to Colonel Lachica, siya iyong nag-disburse. Sabi mo kanina una, "Kasi iyon iyong nakasulat sa Joint Circular 2015-01." And then sabi mo and not only that, sinabi mo rin, "Kasi iyon iyong utos ng head of agency, si VP Inday Sara." Now, you were asked, "Saan sa circular nakasulat na pupuwedeng mag-disburse ng confidential funds isang security officer?" Hindi mo mahanap. Tama po ba?*

Mr. Bacquel. *Asked and answered, Your Honor.*

Mr. Ligutan. *Yes or no? Yes or no? This is a premise to the next question, Your Honor.*

The Presiding Officer. *Witness may answer, Counsel.*

Mr. Ligutan. *Yes or no?*

The Presiding Officer. *Pakisagot po, Ma'am Gina. Kung hindi ninyo po naunawaan, paulit ninyo po iyong tanong.*

Mr. Ligutan. *Wala sa Circular 2015-01 nakasulat diyan na pupuwedeng si Colonel Lachica as security officer iyong mag-disburse ng confidential funds. Wala diyan. Wala diyan. Yes or no?*

Ms. Acosta. *Wala, Your Honor.*

Mr. Ligutan. So therefore, we are left with only the remaining reason why you gave the confidential funds to Colonel Lachica *kasi iyan*, you said *iyong pangalawang rason*.

Ms. Acosta. *Dalawang—Hindi, dalawang rason po ang ibig sabihin ko, sir.*

Mr. Ligutan. Okay. Ma'am, no question yet. *Hindi po tayo nag-aaway.*

Ms. Acosta. *Yes po.*

Mr. Ligutan. You gave the P125 million *kasi utos ni VP Sara sa iyo. Tama po ba?*

Ms. Acosta. *Isa po iyan sa rason, sir.*

Mr. Ligutan. Yes or no?

Ms. Acosta. Yes.

Mr. Bacquel. Asked and answered, Your Honor.

Mr. Ligutan. Despite nothing...

The Presiding Officer. Let the witness—.

Mr. Ligutan. ... in the circular. Yes or no?

Mr. Bacquel. Argumentative and asked and answered, Your Honor.

Mr. Ligutan. I will ask the next question.

The Presiding Officer. Please, answer the question, Madam Witness. It's quite easy to answer.

Ms. Acosta. *Unsa tu say, ano po?*

The Presiding Officer. Despite not being in the circular *na pupuwedeng si Lachica iyong mag-disburse ng confidential fund, ibinigay mo pa rin sa kanya. Tama po ba?*

Ms. Acosta. *Dili nako ihatag, Your Honor, kung wala siya gi-appoint nga security officer, Your Honor.*

Mr. Ligutan. Okay.

The Presiding Officer. That's her interpretation, Counsel.

Mr. Ligutan. Yes.

The Presiding Officer. That's her interpretation and reason why she gave it to Colonel Lachica.

Mr. Ligutan. Or is it because you cannot dare question the Vice President's instruction?

Mr. Bacquel. Objection, Your Honor, argumentative.

Mr. Ligutan. She is more than willing to answer that.

The Presiding Officer. I would sustain it because it was asked and answered already. She gave two reasons, Counsel. No. 1, Colonel Lachica is the one who knows how to implement it. *Tama po?* And No. 2, *dahil inutos sa kanya ng Vice President bilang head of agency. Tama po, Ma'am Gina?*

Ms. Acosta. *Tama po, Your Honor.*

The Presiding Officer. *Iyon po iyong dalawang rason bakit ninyo binigay kay Colonel Lachica?*

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. Okay.

Mr. Ligutan. Now, Madam Witness, I am showing you now a video where you said you entrusted the confidential funds in the amount of P125 million to a security officer because the Vice President directed you to do so and you merely complied. Can we play that?

Ms. Acosta. Comply?

Mr. Ligutan. Wait *po*. *Wala pa po—wala pang* question.

Ms. Acosta. Sorry, sorry *po*.

Mr. Ligutan. It is okay *po*, no need to be sorry *po*.

The Presiding Officer. Counsel, you have three minutes. Is this your last question for the afternoon?

Mr. Ligutan. Yes, Your Honor, last for this afternoon. Let us play it.

[Video presentation]

The Presiding Officer. I think that is it, Counsel.

Mr. Ligutan. Okay. Let us go to next video for this point, Your Honor, please. That is—can we show it?

[Video presentation]

Mr. Ligutan. Okay. And lastly—last point, Your Honor, please. A TSN—Page 137 of the TSN marked as “P-I-1-g” for the prosecution, please. That’ll be the last item for this afternoon for the prosecution.

Show it, please.

“REP. LUISTRO. Do you trust Colonel Lachica?

MS. ACOSTA. I trust Lachica... I trust Sir Lachica *kasi gina-trust po siya ng aking* Head of Office *na si* Ma’am Inday Sara.

REP. LUISTRO. In other words, the only reason why you’re giving your trust to Colonel Lachica is because of the instruction of the Vice President?

MS. ACOSTA. Yes, Ma’am.

REP. LUISTRO. Tama ho ba?

MS. ACOSTA. Yes, Ma’am.

REP. LUISTRO. Without the instruction of the Vice President, you will never give the entire amount of the P125 million to Colonel Lachica?

MS. ACOSTA.”

Mr. Ligutan. What was your answer to that question?

Ms. Acosta. *Nandiyan*, sir.

Mr. Ligutan. *Basahin mo*.

Ms. Acosta. “Yes, ma’am.”

Mr. Ligutan. That’ll be all for the Prosecution this afternoon.

The Presiding Officer. But you will still continue with your direct tomorrow, Counsel?

Mr. Ligutan. Yes, Your Honor.

The Presiding Officer. Thereafter, we will proceed with the cross of Counsel for the Respondent.

Ma’am Gina, *pansamantala pong ipagpapaliban iyong inyong testimonya. Balik po kayo bukas, ha?*

Ms. Acosta. *Opo*, Your Honor.

The Presiding Officer. *Kung maaari po, iyan ay nasa bisa pa rin ng parehong subpoena na inisyu po namin para po hanggang bukas para ipagpatuloy po ninyo iyong inyong testimonya sa Hukumang ito. Okay po, ma'am?*

Ms. Acosta. Yes, Your Honor.

The Presiding Officer. Thank you, ma'am. You're excused, ma'am.

Ms. Acosta. *Salamat po.*

The Presiding Officer. *Puwede na po kayong bumaba sa witness' stand.*

RULING OF THE PRESIDING OFFICER

The following rulings were rendered by the Presiding Officer:

- The Presiding Officer granted the request of Mr. Lemuel Ortonio in his August 13, 2026 letter, to be excused from attending the hearing scheduled the current week which conflicts with his Psychologist Licensure Exam set on August 19 to 20, considering that the Court had not yet completed its examination of Ms. Acosta and would still be examining witness Eduardo Fajarda. The Presiding Officer, however, stated that the Court would issue a subpoena directing Mr. Ortonio to attend the hearing on Monday, August 24, 2026.
- The Presiding Officer informed the Senator-Judges and the parties that the Clerk of Court has completed the comparison of the acknowledgment receipts (ARs) marked as exhibits by both parties. He noted that based on the ARs submitted, 3,616 were common to both parties: 2,666 ARs pertaining to the OVP, and 950 ARs pertaining to the DepEd. He further noted that all ARs marked by the Counsel for the Respondent have corresponding ARs from the Panel of Prosecutors.

The Presiding Officer pointed out, however, that out of the 4,492 ARs of the Prosecution, 876 have no counterpart ARs from the Respondent. He then stated that the Court would be furnishing copies of the Clerk of Court's findings to the parties and the Senator-Judges for reference.

MANIFESTATION OF THE PRESIDING OFFICER

Citing inclement weather and upon the instruction of Senate President Gatchalian, the Presiding Officer announced that the Senate session and the trial would be adjourned earlier than usual, with the proceedings expected to resume the following day unless the trial or Senate session was canceled due to the weather.

ADJOURNMENT OF THE IMPEACHMENT TRIAL

The Presiding Officer declared the impeachment trial adjourned until 10:00 a.m. on Tuesday, August 18, 2026.

It was 2:06 p.m.

I hereby certify to the correctness of the foregoing.

Approved on August 24, 2026

Atty. RENATO N. BANTUG JR.

Clerk of Court

